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PROJECT EDISON – ACCRA BREWERIES POWER PURCHASE AGREEMENT

for the Purchase of Energy Generated On-Site

ACCRA BREWERIES LTD

AND

CROSSBOUNDARY ENERGY GHANA LTD

MJT GDG

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DETAILS

Date

Parties **Buyer: ACCRA BREWERIES LIMITED**

and

Supplier: CROSSBOUNDARY ENERGY GHANA LIMITED

the Supplier and Buyer each referred to individually as a **'Party'** and collectively as the **'Parties'**.

BACKGROUND

A The Buyer is part of the AB InBev Group.

B AB InBev and its group of companies aim to source all of their purchased electricity from renewable sources by 2025.

C The Supplier intends to develop, design, finance, construct, test, commission, complete, own, operate and maintain a rooftop solar photovoltaic electric generating facility (the **Facility**) with an initial installed nameplate capacity of approximately 2,241 kWp at the Site.

D The Facility shall be located at the Site being the Buyer's premises in Accra Breweries Limited, Ghana.

E The Supplier wishes to sell to the Buyer, and the Buyer wishes to purchase from the Supplier, all Energy generated by the Facility delivered to it at the Site on the terms and subject to the conditions in this Agreement.

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CORE CONDITIONS

1 DEFINITIONS & INTERPRETATION

1.1 **Definitions**In this Agreement:

AB InBev means ANHEUSER-BUSCH INBEV SA/NV, a public listed company (naamloze vennootschap/societe anonyme) incorporated in Belgium, with its registered address at Grand Place 1, 1000 Brussels, Belgium and administrative office at Brouwerijplein 1, 3000 Leuven, Belgium.

AB InBev Group means Anheuser Busch InBev SA/NV and any operating company owned or controlled (directly or indirectly) by Anheuser Busch InBev SA/NV, including AB InBev. For the sake of clarity, Accra Breweries Limited is part of the AB InBev Group.

Abandonment means:

(a) following the Effective Date, cessation of material work on the design, procurement or construction of the Facility for at least 40 (forty) consecutive days by the Supplier or the Supplier's Personnel; or

(b) following achievement of Commercial Operation, relinquishment by the Supplier of possession and control of the Facility, other than:

(i) by a Change of Control permitted under this Agreement; or

(ii) as a result of a Force Majeure Event.

Acceptable Credit Rating means for a registered financial institution providing the Supplier Bank Guarantee, a provider of any Insurance or any other person a Credit Rating of at least:

(a) Standard & Poor's BBB-; or

(b) Moody’s Baa3,

or an equivalent rating from another Ratings Agency.

Achieved Capacity means the Capacity of the Facility achieved at Commercial Operation.

Act of Insolvency means, with respect to a Party:

(a) the Party is placed into liquidation, administration or business rescue;

(b) a deed or scheme of arrangement or compromise (whether formal or informal) with all or any creditors is entered regarding the Party;

(c) an application is made to a court for the business rescue or winding up of the Party and such application is not stayed or dismissed within 10 Business Days after it is made;

(d) the Party or its shareholders resolves that it be placed in business rescue or voluntarily wound up;

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(e) a winding up order is made regarding the Party whether provisionally or finally;

(f) a receiver, business rescue practitioner, receiver and manager, provisional liquidator or liquidator is appointed to the Party;

(g) a mortgagee takes possession of any secured or pledged assets of the Party;

(h) the Party notifies the other party or any creditor of the first party or its Guarantor that it is or is deemed under any Applicable Law to be insolvent or unable to pay its debts as and when they fall due; or

(i) anything analogous to any of the above occurs under the laws of any relevant jurisdiction.

Affiliate of any named person means any other person that controls, is under the control of, or is under common control with, the Party.

Agreement means this agreement, together with all Schedules.

Agreement Term has the meaning in clause 3.

Annual Generation Forecast means the Supplier's estimate, based on the Installed Capacity, of the Energy expected to be generated by the Facility and exported to the Point of Delivery in respect of each Month of the relevant Contract Year, in the Approved Form.

Anti-Trust and Competition Laws has the meaning in clause 22.8.

Applicable Law means:

(a) any act, regulation or other statutory instrument or proclamation of any applicable jurisdiction in which any act or obligation in connection with this Agreement is or is to be carried out or regulated;

(b) any law, whether of a Constitutional, legislative or common law nature;

(c) any applicable standards and codes;

(d) any judgment, decree or similar order with mandatory effect or any binding requirement or mandatory approval of a Government Authority, including any Government Approval; and

(e) the rules, requirements and procedures of any Green Benefit Scheme,

relevant to a Party, its Personnel, the Facility and the performance of all or part of this Agreement.

Approved Design means the final agreed design and layout post the Technical Design Review.

Approved Form means:

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(a) the form of any document or other deliverable as specified in a Schedule to this Agreement; or

(b) where the form of document or other deliverable is not specified in a Schedule to this Agreement, as reasonably approved by the Buyer.

Billable Deemed Energy has the meaning in clause 9.6.

Billing Statement has the meaning in clause 28.3.

Business Day means any day that is not a Saturday, a Sunday or a Day on which banks in the Country are required to be closed.

Buyer means **ACCRA BREWERIES LIMITED**.

Buyer Global Responsible Sourcing Policy means the policy which, as at the Execution Date, can be found on the AB INBEV website below:

http://www.ab-inbev.com

as may be amended or replaced from time to time.

Buyer Termination for Default Amount means the amount payable by the Buyer to the Supplier arising from a Buyer Event of Default equal to the Early Termination Payment in accordance with SCHEDULE 4: .

Buyer Event of Default means the events that constitute events of default of the Buyer in terms of clause 13.3.

Certifier means an independent, reputable, professional, third party certifier approved by the Supplier and engaged by the Buyer (at its sole cost and expense) to perform verification and certification duties in accordance with clause 5.

Change in Law means:

(a) the enactment, adoption, promulgation, modification or repeal of any Applicable Law (but excluding a change in income tax, any "Goods & Services" or "Value Added" taxes, payroll tax, land tax, capital gains tax, fringe benefits tax or similar taxes), after the Execution Date, that are materially different to the requirement in effect as of the date of this Agreement or which has a material cumulative effect over this Agreement;

(b) the imposition of any material condition on the issuing of or renewal of or change to any Government Approval after the Execution Date; or

(c) the failure by any relevant Government Authority to issue or renew any Government Approval, provided such failure was not caused or contributed to by the Supplier or its Personnel.

Change of Control means, with respect to the Supplier:

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(a) a change in the direct or indirect ownership of the Supplier or its immediate upstream Affiliate such that, upon the occurrence of such change, the Supplier or its immediate upstream Affiliate are not, directly or indirectly, controlled by the Ultimate Parent; or

(b) a change in the direct or indirect ownership of the Supplier or its immediate upstream Affiliate such that, upon the occurrence of such change, one or more persons that were not Affiliates of the Supplier or its immediate upstream Affiliate immediately prior to such change have control of the Supplier, its immediate upstream Affiliate or the Facility.

Claiming Party has the meaning in clause 12.1.

CP Sunset Date means the latter of 120 days after the Execution Date, or on the date that the Government Approval for construction is obtained from the Energy Commission.

Commercial Operation is achieved when the Buyer is satisfied (acting reasonably) that the following conditions have been successfully achieved by the Supplier:

(a) written confirmation by the Seller and acceptance by the Buyer that commissioning has occurred in accordance with the commissioning checklist as agreed between the Parties; and

(b) the Supplier has obtained all of the relevant Government Approvals required to operate and maintain the Facility in accordance with this Agreement, Applicable Laws and to discharge its other obligations under this Agreement.

Commercial Operation Date means the date on which the Supplier has satisfied each of the conditions to achieving Commercial Operation and commences the supply of Energy in accordance with this Agreement.

Commercial Operation Longstop Date means 90 days after the Target Commercial Operation Date.

Commercially Reasonable Efforts or **Commercially Reasonable Manner** means, with respect to any purchase or sale or other action required to be made, attempted, or taken by a Party under this Agreement, such efforts as a prudent business would undertake for the protection of its own interest under the conditions affecting such purchase or sale or other action, including the amount of notice of the need to take such action, the duration and type of the purchase or sale or other action, the competitive environment in which such purchase or sale or other action occurs, and the risk and cost to the Party required to take such action.

Compliance Process has the meaning in clause 22.11.

Conditions Precedent means:

Conditions for the benefit of the Supplier:

(a) **Financial Close -** Financial Close has been achieved (except for the condition requiring this Agreement to be unconditional in accordance with its terms).

(b) **Government Approvals** – all approvals required by Applicable Law for the commencement of construction of the Facility are in place.

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Conditions for the benefit of the Buyer:

(a) **Equipment –** the Supplier must demonstrate to the satisfaction of the Buyer (acting reasonably) that the Equipment to be installed in the Facility meets the requirements of the Facility Specification**.**

(b) **No breach** – as at the date on which all other Conditions Precedent are satisfied, the Supplier has not breached the terms of the Agreement which have come into force and effect on the Execution Date.

(c) **Government Approvals –** all approvals required by Applicable Law for the commencement of construction of the Facility are in place to the satisfaction of the Buyer.

(d) **Insurance –** proof to the Buyer's satisfaction (acting reasonably) has been provided that the Supplier has all Insurances required under the Agreement in place.

(e) **Technical design review** – the Buyer's site engineers at the Site approve the design relating to the Facility.

Confidential Information has the meaning in clause 25.17.

Consequential Loss means any:

(a) loss of contract, profit, revenue or anticipated savings, other than specifically provided for in this Agreement;

(b) loss of, or damage to, reputation, credit rating or goodwill;

(c) loss or denial of opportunity;

(d) loss of access to markets;

(e) wasted overheads and wasted expenditure;

(f) special, incidental or punitive damage; or

(g) any loss or damage arising from special circumstances that are outside the ordinary course of things,

however arising in respect of any circumstances under or in connection with this Agreement, and regardless of whether a claim for the same is made under this Agreement, any Applicable Law, delict, negligence, strict liability, under an indemnity or a warranty, in equity or otherwise.

Contracted Capacity has the meaning in SCHEDULE 1:

Construction Contract means any agreement for the engineering or construction of the Facility (including the supply of equipment and components comprising the Facility).

Construction Contractor means any party engaged by the Supplier under any Construction Contract.

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Contract Year means the period from the Commercial Operation Date through to 31 December of the year in which the Commercial Operation Date occurs and, from then on, each calendar year during the Supply Term.

Core Conditions means clauses 1 to 28 of this document, inclusive (excluding the Schedules).

Costs means, with respect to the Non-Defaulting Party, brokerage fees, commissions and other similar third-party transaction costs and expenses reasonably expected to be incurred by such Party in entering into a new arrangement or arrangements that replace this Agreement, if such arrangements are in fact entered into, and all reasonable attorneys' fees and expenses incurred by the Non-Defaulting Party in connection with remedies initiated under this Agreement.

Cost of Replacement Energy means the amount payable as liquidated damages by the Supplier to the Buyer for the Shortfall Energy in terms of clause 8.12 and calculated as follows:

(Effective Energy Cost – the Escalating Price) x (Shortfall Energy).

Country means Ghana.

Credit Rating means, in respect of an entity, the rating assigned by a Ratings Agency to the unsecured, senior, long term debt or deposit obligations of the entity (unsupported by third party credit enhancement).

Cure Period means 30 (thirty) days for curing any breach or default of any provision of this Agreement by the Defaulting Party, and shall commence from the date on which a notice is delivered from the Non-Defaulting Party to the Defaulting Party asking the latter to cure the breach or default specified in such notice.

Day means a calendar day.

Defaulting Party means the Party that causes an Event of Default.

Delay Damages means the sums payable by the Supplier to the Buyer for each day that the Supplier fails to achieve Commercial Operation by the Target Commercial Operation Date, calculated using formula: (Effective Energy Cost – Escalating Price) x (Minimum Annual Generation on a Pro Rata Basis).

Deemed Energy means the aggregate quantity of Energy in MWh recorded as available for export at the Point of Delivery but not actually exported due to the unavailability of the Existing Facility to accept Energy from the Facility, including for the sake of clarity reduced demand or consumption at the Existing Facility, as calculated in accordance with Schedule 6.

Design Life has the meaning in the Facility Specifications.

Developed IP means any Intellectual Property Rights created by the Supplier through the performance of this Agreement, including the performance of the Services;

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Discount Rate refers to the interest rate used in discounted cash flow analysis to determine the present value of future cash flows. The rate shall not be more than 2.5 % (two and a half) above the prime interest rate in Ghana and shall be established on the achievement of Financial Close.

Dispose has the meaning in clause 23.1.

Dispute has the meaning in clause 16.1.

Dispute Notice means a written notice of any Dispute, which notice must include a concise statement of the question or issue in dispute together with a statement listing the relevant facts and appropriate supporting documentation.

Early Termination Payment means the amount payable as set out in Schedule 4.

Effective Energy Cost means in respect of the electricity purchased from the Utility for the Site, the total electricity (kilowatt-hours) consumption costs paid by the Buyer to the Utility divided by the number of kilowatt-hours provided by the Utility over the applicable 12 month period, which will only be calculated using electricity purchased during the Facility's daily operational period i.e. 8 am – 4 pm. For the avoidance of doubt, the Effective Energy Cost price calculation will be calculated on a pre-VAT basis and shall exclude demand charges, levies, service charges and any other charges not related to kilowatt-hour related cost.

Effective Date means the date that the last of the Conditions Precedent have been satisfied or waived in accordance with clause 3.6 as confirmed in writing between the parties.

Electricity Commission means the Electricity Commission, Ghana, established in terms of the *Energy Commission Act 541 of 1997.*

Enabling Works means the enabling works for physical construction described in table 1 in SCHEDULE 5: .

Energy means the net electric energy generated by the Facility.

Escalating Price has the meaning in SCHEDULE 1: .

Event of Default has the meaning in clauses 13.2 and 13.3.

Excluded Green Benefit means each of:

(a) trading losses;

(b) any corporation tax relief or exemption; any capital grant or allowance available in respect of the construction of the Facility;

(c) any other tax allowance, tax relief, tax credit, tax deduction or tax exemption for the benefit of the Supplier;

(d) any payment or credit received or accruing (or capable of being received or accrued) under a contract or warranty to which the Supplier is a party for the construction, installation, insurance or maintenance of the Facility; and

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(e) any reductions in contractual or delictual liabilities which it is the Supplier's responsibility to pay or bear.

Execution Date means the date the last of the Parties sign this Agreement.

Existing Facility means all pre-existing plant, equipment and structures at the Buyer's site where the works and services are to be performed, prior to the date of this Agreement.

Expiry Date means 15 years calculated from the Commercial Operation Date, or as may be extended by the Extension Period in accordance with the terms of this Agreement.

Facility means the roof or ground-mounted, grid-connected solar photovoltaic electricity generator to be designed, developed, financed, constructed, tested, commissioned, operated, maintained and repaired by the Supplier in accordance with the Approved Design, the Facility Specifications and the Regulatory Framework, together with all associated connection assets, protection equipment and related infrastructure, required for generation, transmission, distribution, delivery and supply of Energy to the Buyer at the Point of Delivery.

Facility Specifications means the specifications set out in SCHEDULE 1: Part 2: .

Facility Testing means all of the pre-commissioning, commissioning, performance guarantee and other tests required to demonstrate that the whole of the Facility complies with the Facility Specifications, the Regulatory Framework and the other requirements of this Agreement.

Facility Usage means the consumption of Energy by the Facility (including for start-up and shut-down, maintenance and other parasitic load).

Financial Close means the fulfilment of all conditions precedent to the initial availability of funds under any financing agreements entered into by the Supplier or any Affiliate, with any of the Financier.

Financier(s) means any bank(s) or financial institution(s) (other than any Affiliate of the Supplier) providing any funding for the purposes of (or in connection with) the Facility or this Agreement.

Force Majeure Event has the meaning in clause 12.

Gains means, with respect to the Non-Defaulting Party, an amount equal to the present value of the economic benefit to it, if any (exclusive of Costs), resulting from the termination of this Agreement and the transactions contemplated by this Agreement, as determined by the Non-Defaulting Party in a Commercially Reasonable Manner.

Good Utility Practice means the exercise of that degree of skill, care, diligence, prudence and foresight which would reasonably and ordinarily be expected from a highly skilled and experienced developer and operator engaged in the same type of undertaking as the Facility and the transactions contemplated by this Agreement under the same or similar circumstances and, without limitation, incorporates any similar or higher standard as may be otherwise defined in the Applicable Law for energy generating facilities.

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Government Approval means any license, permit, approval, consent, authorization, waiver, exemption, permission, variance, filing, registration, qualification, accreditation, direction, declaration, order or similar requirement of or from any Government Authority, and any renewal, replacement or variation of them and includes any generation licence, environmental authorisation or other registration required for the Supplier to perform its obligations under this Agreement in accordance with any Applicable Law.

Government Authority means any national, provincial, regional, municipal or local governmental body, governmental, quasi-governmental, regulatory or administrative agency, commission, body or other authority, in the Country exercising or entitled to exercise any administrative, executive, judicial, legislative, policy, regulatory or taxing authority, oversight or power, or any court or governmental tribunal.

Green Benefit means all exemptions, waivers, subsidies, environmental credits, incentives, benefits and other rights related to the generation of, sale of or purchase of the Energy (including Tax benefits) and includes any such green benefit arising after the Effective Date, excluding Excluded Green Benefits.

Green Benefit Scheme means each scheme, Applicable Law, Government Approval, policy or other arrangement established or regulated by a Government Authority (or an entity designated by such Government Authority), that provides for the creation of any Green Benefit including any such scheme that comes into full force and effect on or after the Execution Date.

IFRS means generally accepted accounting principles of the Country, consistently applied and as in effect from time to time.

Independent Expert has the meaning in clause 17.2.

Indemnified Party has the meaning in clause 19.1.

Indemnifying Party has the meaning in clause 19.1.

Installed Capacity means the kilowatt peak capacity of the Facility as at the Commercial Operation Date, determined on completion of the commissioning checklist as agreed between the Parties, which shall be equal to, or not more than 10% (ten percent) greater than, the Contracted Capacity as seen in SCHEDULE 1: .

Insurances means those policies of insurances and the associated requirements in SCHEDULE 2: .

Intellectual Property Rights means:

(a) all intellectual property rights, including all registered and unregistered rights in respect of copyright, designs, trade marks (including service marks), know how, confidential or other proprietary information (including trade secrets), patents, inventions, computer software programs (in both source and object code form) and all other rights relating to inventions or discoveries or resulting from intellectual activity, whether in Ghana or elsewhere;

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(b) any application for, or right to apply for, registration of any matter described in paragraph (a);

(c) any right to take action in relation to infringement or other misuse of any matter described in paragraph (a); and

(d) any moral rights.

Interest Rate has the meaning in SCHEDULE 1:

Issuing Authority means the relevant Government Authority (or other entity) responsible for the issue of any Green Benefit.

Latent Conditions means in relation to the Site, the physical conditions present on the Site and its near surrounds which could not have been foreseen by a reasonable contractor at Execution Date having carried out feasibility investigations, including without limitation the presence of asbestos or structural, electrical or mechanical problems with the Site.

Lien means any mortgage, pledge, hypothecation, assignment, mandatory deposit arrangement, encumbrance, lien (statutory or otherwise), claim, preference, priority or other security agreement or interest of any kind or nature whatsoever.

Losses means, with respect to the Non-Defaulting Party, an amount equal to the present value of the economic loss to it, if any (exclusive of Costs), resulting from the termination of this Agreement (including the underlying Events of Default), as determined by the Non-Defaulting Party in a Commercially Reasonable Manner.

Metering Equipment means the Revenue Meter and all other metering and associated data processing equipment installed or to be installed at the Facility in accordance with the Regulatory Framework and at the Point of Delivery that is required to measure, calculate, record or report data relating to Energy exported from the Facility to the Point of Delivery.

Minimum Annual Generation has the meaning in the Facility Specifications.

Month means a calendar month.

Moody's means Moody's Investor Services, a Delaware corporation, and its successors and assigns.

MW means megawatt.

MWh means megawatt-hour.

National Electricity Law means the National Electricity Grid Code (2009) issued by the Electricity Commission of Ghana.

Net Payable Amount means the net amount due and payable from one Party to the other under this Agreement, following any permitted adjustment, set-off, withholding and/or deduction.

Network Operator means the Utility licensed to own and operate the System.

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Non-Defaulting Party means, with respect to an Event of Default, the Party other than the Defaulting Party.

O&M Contract means any agreements for the operation, maintenance or repair of the Facility (including any equipment or components comprising the Facility).

O&M Contractor means any party engaged by the Supplier under any O&M Contract.

Party and **Parties** have the meaning in the preamble.

Party Representative and **Parties' Representatives** have the meaning in clause 16.1.

Permitted Lien means:

(a) any Lien granted in favor of the Finance Parties; and

(b) any Lien expressly approved by the Parties in writing.

Personnel means:

(a) for the Supplier:

(i) any Affiliate of the Supplier;

(ii) the Construction Contractor;

(iii) the O&M Contractor;

(iv) any Finance Party;

(v) the employees, agents, consultants, representatives and contractors of any of the Supplier, the Supplier's Affiliates, the Construction Contractor, the O&M Contractor and the Finance Parties; and

(vi) any person that is on the Site (whether at the invitation of the Supplier or otherwise, but does not include the Buyer and its Personnel); and

(b) for the Buyer, any Affiliate of the Buyer.

Point of Delivery means the Energy interconnection point of the Facility to the Existing Facility marked on the Facility Specification which will be agreed on during the Technical Design Review.

Qualifying Cause of Delay is limited to the following events and circumstances:

(a) Force Majeure Event;

(b) Qualifying Change in Law;

(c) the discovery of any Latent Condition and any period the Buyer takes to remedy the Latent Condition;

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(d) any delay in obtaining approval from the Network Operator to connect the Facility to the System Interconnection Point (provided that the Supplier has in a timely manner complied with all of its obligations in respect of the obtaining of such authorisation**)**;

(e) any extra health and safety measures required to be carried out by the Supplier in terms of clause 6.20; and

(f) any act by the Buyer, which would prevent or delay the Supplier from carrying out its obligations in relation to the construction and commissioning of the Facility;

Qualifying Change in Law has the meaning in clause 11.

Qualifying Change in Law Notice has the meaning given in clause 11.1.4.1.

Ratings Agency means:

(a) Standard & Poor's or Moody's; or

(b) if those agencies cease to operate or give ratings of the kind contemplated in the definition of 'Acceptable Credit Rating', any other ratings agency recognized in the Country's financial market as being of equivalent standing to Standard & Poor's or Moody's from time to time and which is approved by the Buyer (acting reasonably).

Records has the meaning in clause 6.2.

Reference Cell means a device used to measure the in plane radiation available at the Site.

Regulatory Framework means:

(a) Good Utility Practice;

(b) the Government Approvals;

(c) the requirements of Government Authorities;

(d) Applicable Laws, including but not limited to the National Electricity Law; and

(e) the Facility Specifications.

Representatives has the meaning in clause 25.17.

Revenue Meter means the meter dedicated exclusively to the Facility, installed at the location set out in the Facility Specifications which is used to measure the Energy exported from the Facility to the Buyer at the Point of Delivery and may include a pyranometer or Reference Cell to measure Deemed Energy which would have been delivered to the Buyer but for the unavailability of the Existing Facility to receive Energy from the Facility.

S&P means Standard & Poor's Rating Services, a division of The McGraw-Hill Companies, Inc., a New York corporation, and its successors and assigns.

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SANAS means the South African National Accreditation Standard.

Sanctioned Territories has the meaning in clause 22.7.1.2.

Sanctions has the meaning in clause 22.7.1.1.

Sent Out Energy means the aggregate quantity of Energy in MWh recorded by the Revenue Meter or otherwise determined hereunder as having been generated by the Facility and exported to the Point of Delivery.

Schedule means a Schedule to this Agreement.

Scheduled Outage means a planned interruption or reduction of the Facility's generation of Energy that:

(a) has been Scheduled in accordance with clause 8.15; and

(b) is required for inspection or preventive maintenance of the Facility.

Scheduled Outage Plan has the meaning in clause 8.15.

Shortfall Energy has the meaning in clause 8.12.

Site means those portions of the property and on the rooftop of the building located on such property on which the Facility will be installed, as detailed in SCHEDULE 1: .

Supplier means **CROSSBOUNDARY ENERGY GHANA LIMITED**.

Supplier IP means any Intellectual Property Rights held by the Supplier or any of associated company prior to the date of this Agreement or developed by or for the Supplier independently of this Agreement.

Supplier Termination for Default Amount means the amount payable by the Supplier to the Buyer arising from a Supplier Event of Default, calculated as the lesser of i) the Cost of Replacement Energy for one year, calculated for the year in which termination occurs or ii) $ 80 000, or (iii) the time period from the termination of this Agreement to the moment the Buyer enters into a new contract with a new supplier and there is an installed replacement facility which offers the Buyer an equal or more favourable Escalating Price.

Supplier Event of Default means the events which constitute events of default of the Supplier in terms of clause 13.2.

Supply Term has the meaning in clause 3.2.

System means the electrical systems owned and/or operated by the Network Operator for the distribution and/or transmission of Energy to the Site and beyond the System Interconnection Point.

System Interconnection Point means the Energy interconnection point of the Existing Facility to the System marked on the Facility Specification.

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Target Annual Generation has the meaning in the Facility Specification.

Target Commercial Operation Date has the meaning in SCHEDULE 1: .

Technical Design Review means a review of the technical design of the proposed Facility where the Buyer and Supplier will agree on any amendments as per the Buyer's reasonable request to the Supplier's standard design to satisfy the Buyer's requirements on a per site basis.

Termination for Default Date has the meaning in clause 13.1.

Termination for Default Amount means, as applicable,

(a) a Buyer Termination for Default Amount; or

(b) a Supplier Termination for Default Amount.

In the event of termination resulting from a Buyer Event of Default prior to Commercial Operation Date, the below definition shall apply for the Termination for Default Amount -

with respect to the Non-Defaulting Party, an amount equal to:

(a) the positive difference, if any, between:
  (i) the Losses and Costs incurred by the Non-Defaulting Party as a result of the termination of this Agreement under clause 13.3.5; less
  (ii) the Gains of the Non-Defaulting Party as a result of the termination of this Agreement under clause 13.3.5 ,

plus

(b) any unpaid amounts owed to the Non-Defaulting Party by the Defaulting Party that accrued prior to the Termination for Default Date,

minus

(c) any unpaid amounts owed to the Defaulting Party by the Non-Defaulting Party that accrued prior to the Termination for Default Date,

provided that if the Termination for Default Amount is a negative amount, then the Termination for Default Amount will be equal to zero and the Defaulting Party waives its right to recover any unpaid amounts owed to it by the Non-Defaulting Party and any other remedies or damages that may be available at law, in equity or otherwise.

Test Energy means any Energy generated by the Facility prior to the Commercial Operation Date.

Ultimate Parent means, in relation to a body corporate, a body corporate that:

(a) is a holding company of the first-mentioned body; and

(b) is not itself a subsidiary of a body corporate.

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Utility means the public utility which is the current provider of electricity to the Site, being the Electricity Company of Ghana ("**ECG**").

VAT has the meaning given to that term in the VAT Act.

VAT Act means the *Value-Added Tax Act No. 870 of 2013*.

Weighted Average Cost of Capital or WACC means the average rate of return a company expects to compensate all its different investors. The weights are the fraction of each financing source in the company's target capital structure.

Work Health and Safety Legislation means any Applicable Law, legislative requirement, principles of law or equity established by decisions of the Ghanaian Courts or requirements of persons acting in the exercise of statutory powers relating to health and safety, including but not limited to the *Labour Act no. 561 of 2003*.

2.1 In this Agreement:

2.1.1 the masculine includes the feminine and vice versa;

2.1.2 a term defined as one part of speech has a corresponding meaning when used as another part of speech;

2.1.3 captions and headings in this Agreement are for ease of reference only and are not part of this Agreement;

2.1.4 the term 'including' means 'including without limitation';

2.1.5 the word 'or' has the inclusive meaning represented by the phrase 'and/or';

2.1.6 references to 'clauses' or 'Schedules' are to clauses or Schedules of this Agreement;

2.1.7 references to a person are references to any legal person (including any individual corporation, limited liability company, partnership, company, joint venture, association, trust, unincorporated organization or Government Authority) and also to its permitted successors and assigns;

2.1.8 references to any law includes such law as amended, supplemented, modified, reenacted, superseded or otherwise modified from time to time, unless otherwise expressly provided for in this Agreement and includes all regulations, notices, rules and other binding enactments published in terms of such law;

2.1.9 whenever any action must be taken under this Agreement on or by a Day that is not a Business Day, such action may be validly taken on or by the next Day that is a Business Day; and

2.1.10 in determining periods of time from a specified date to a later specified date, the word 'from' means 'from and including' and the words 'to' and 'until' each mean 'to but excluding'.

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2.2 The following documents constitute this Agreement:

2.2.1 the Core Conditions and;

2.2.2 each Schedule (and their attachments),

(together, **Contract Documents**).

Complementary

2.3 The Contract Documents are correlative, complementary and mutually explanatory of one another and must be read as a whole.

2.4 When construing the Contract Documents:

2.4.1 if there is any ambiguity, discrepancy or inconsistency between the Contract Documents, the following order of precedence will apply:

2.4.1.1 SCHEDULE 1: ;

2.4.1.2 the remaining Schedules (inclusive) read together; and

2.4.1.3 the Core Conditions

2.4.2 where the requirements of quality or any standard of performance are not expressly specified, the highest quality or standard must be applied.

3 TERM OF AGREEMENT

Term

3.1 Subject to clause 3.3, this Agreement commences on the Effective Date and unless terminated earlier or extended in accordance with this clause 3, expires on the Expiry Date (**Agreement Term**).

3.2 The supply term commences on the Commercial Operation Date and, unless terminated earlier or extended, expires on the Expiry Date (**Supply Term**).

Early Termination

3.3 This Agreement may terminate early prior to the expiry of the Supply Term in the following circumstances:

3.3.1 The Agreement may be terminated early in accordance with the Termination for Default provisions set out in clause 13.

3.3.2 The Buyer may, by giving notice to the Supplier at least 1 (one) Month prior to the end of the relevant Contract Year, terminate this Agreement for convenience. Such termination will take effect on 31 December of the relevant Contract Year. The Buyer shall be liable to pay the Early Termination Payment as shown in SCHEDULE 4: . The Buyer must, if terminating this Agreement for convenience

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under this clause 3.3.2 pay the Early Termination Payment applicable to the Contract Year following the year in which notice was given. For the avoidance of doubt if notice is given in the 8th (eighth) Contract Year, the applicable Early Termination Payment is the Year 9 payment.

Conditions Precedent & Effective Date Clauses 1 *(Definitions and Interpretation)*, 2 *(Definitions and Interpretation)*, 3.8 to 3.9 (*Conditions Precedent and Effective Date*), 15.2 (*Dispute Resolution*), 21 (*Intellectual Property*), 22 (*Responsible Sourcing Policies, Business Integrity)*, 25.17 (*Confidentiality*), 25.19 - 25.20 (*Anti-Bribery*) and 25.22 (*Governing Law*) come into effect on the Execution Date. The remaining provisions of this Agreement come into effect on the Effective Date.

3.5 The Effective Date will be the date on which all of the Conditions Precedent have been satisfied or waived by the Party entitled to the benefit of such Condition Precedent. The Buyer and Supplier must jointly certify in writing the occurrence of the Effective Date within 5 (five) Business Days after satisfaction or waiver of all Conditions Precedent. Any related Dispute shall be resolved in accordance with the dispute resolution provisions set out in clause 15.2.

Satisfaction and Waiver

3.6 Each Party must:

3.6.1 use best endeavors to satisfy the Conditions Precedent before the CP Sunset Date;

3.6.2 cooperate with the other Party to do all things necessary to satisfy the Conditions Precedent; and

3.6.3 promptly inform the other Party in writing when a Condition Precedent is satisfied or if a Condition Precedent is incapable of being satisfied by the CP Sunset Date.

3.7 A Party with the benefit of a Condition Precedent may, by written notice to the other Party prior to the CP Sunset Date, waive any such Condition Precedent.

3.8 Where a Condition Precedent is for the benefit of both Parties, each Party must agree in writing to waive such Condition Precedent.

3.9 If the Conditions Precedent have not been waived or fulfilled by the CP Sunset Date, or such extended date as the Parties may agree in writing prior to the CP Sunset Date, either Party is entitled to terminate this Agreement by written notice and upon termination, this Agreement shall lapse and be of no further force and effect and neither of the Parties shall have any claim against the other Party in terms of this Agreement, save where such claim arose from one of the clauses specified in clause 3.4 prior to such termination.

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4 CONSTRUCTION OF THE FACILITY

Construction

4.1 From the Effective Date, the Supplier must:

4.1.1 procure any and all works and services required to:

4.1.1.1 construct, test and commission the Facility; and

4.1.1.2 connect the Facility to the Existing Facility;

4.1.2 procure, maintain and renew all Government Approvals required to:

4.1.2.1 construct, test and commission the Facility;

4.1.2.2 connect the Facility to the Existing Facility; and

4.1.2.3 perform its other obligations as required under this Agreement and Applicable Laws; and

4.1.3 ensure that:

4.1.3.1 all works and services required to construct, test and commission the Facility and to connect the Facility to the Existing Facility are performed in accordance with the Regulatory Framework, this Agreement and any reasonable request made by the Buyer during the Technical Design Review; and

4.1.3.2 at the Commercial Operation Date, the Facility is fit for purpose for which it was designed and capable of remaining fit for purpose for the Design Life.

Latent Conditions

4.2 If the Supplier becomes aware of a Latent Condition and advises the Buyer of such Latent Condition, and such Latent Condition adversely impacts the Supplier's ability to construct the Facility in accordance with Clause 4.1, the Buyer must, at its own cost, promptly carry out any remedial work reasonably required in order for the Supplier to construct the Facility and carry out works in accordance with Clause 4.1 safely and securely.

Progress

4.3 Each Month from the Effective Date until the Commercial Operation Date, the Supplier must prepare and submit to the Buyer in the Approved Form progress reports for the design, financing, construction, testing and commissioning of the Facility and connection of the Facility to the Existing Facility (including details of any event or circumstance that may delay achievement of Commercial Operation by the Target Commercial Operation Date).

Changes

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4.4 Except in case of repairs or maintenance or to comply with the provisions of this Agreement, the Supplier must not, without first obtaining the Buyer's prior written consent (such consent not to be unreasonably withheld, conditioned or delayed), make or allow any modification, expansion, augmentation or alteration to the Facility after the Commercial Operation Date.

Test Energy

4.5 The Buyer shall purchase Test Energy at the Escalating Price.

5 COMMERCIAL OPERATION OF THE FACILITY

Commercial Operation

5.1 The Supplier must:

5.1.1 ensure that the Facility achieves Commercial Operation by no later than the Target Commercial Operation Date; and

5.1.2 give the Buyer:

5.1.2.1 at least 10 (ten) Business Days' prior written notice of the anticipated date for Commercial Operation;

5.1.2.2 prompt written notice of any event or circumstance that may delay achievement of Commercial Operation by the Target Commercial Operation Date; and

5.1.2.3 written notice within 2 (two) Business Days after it achieves Commercial Operation, including:

(a) all information reasonably required to demonstrate that Commercial Operation has been achieved in accordance with the requirements of this this Agreement (including any information required by the Network Operator and any Government Authorities); and

(b) written confirmation of the Installed Capacity upon completion and in accordance with the commissioning checklist as agreed between the Parties.

5.2 The Supplier's notice in clause 5.1.2.2 must set out:

5.2.1 the date on which the Supplier expects (acting reasonably) to achieve Commercial Operation; and

5.2.2 full details of the event or circumstance which is delaying or may delay achievement of Commercial Operation.

Extension of the Target Commercial Operation Date

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5.3 Except to the extent caused or contributed to by the Supplier or its Personnel, the Supplier is, entitled to an extension to the Target Commercial Operation Date and the Commercial Operation Longstop Date on a day-for-day basis for each day the Supplier is actually delayed from achieving Commercial Operation by the Target Commercial Operation Date due to a Qualifying Cause of Delay.

5.4 The Supplier and the Buyer must take all reasonable steps to mitigate the effects of the relevant Qualifying Cause of Delay and the Supplier's entitlement to an extension to the Target Commercial Operation Date will be reduced to the extent the Supplier and its Personnel have failed to take Commercially Reasonable Efforts to mitigate such delay.

5.5 In the event that the Qualifying Cause of Delay results in a delay to the achievement of the Target Commercial Operation Date by more than 150 (one hundred and fifty) Days, the Buyer may, at its discretion, terminate this Agreement on written notice to the Supplier.

Delay Damages

5.6 If the Supplier fails to achieve Commercial Operation on or before the Target Commercial Operation Date (as may be extended into terms of clause 5.3), the Supplier must pay to the Buyer Delay Damages for each day by which Commercial Operation Date is delayed beyond the Target Commercial Operation Date, provided that Delay Damages do not accrue after the Commercial Operation Longstop Date. The Supplier will be required to have a bank guarantee in place during the construction period in order to service the liquidated damages and shall provide a copy of the bank guarantee to the Buyer at the Buyer’s request.

5.7 Delay Damages accrue on and from the day after the Target Commercial Operation Date and continue to accrue until the Commercial Operation Longstop Date.

5.8 The Parties acknowledge and agree that Delay Damages are a reasonable and genuine pre-estimate of the loss the Buyer will suffer in the event of the Supplier's failure to achieve Commercial Operation on or before the Target Commercial Operation Date.

5.9 Delay Damages are a debt due and payable by the owing Party and must be paid within 30 (thirty) Business Days after the Buyer's written notice requesting payment.

Independent Expert

5.10 Any Dispute regarding the satisfaction of the conditions for achievement of Commercial Operation and/or the quantum of Delay Damages must be referred to the Independent Expert in accordance with clause 17.

6 OPERATION OF THE FACILITY

Operation and Maintenance

6.1 From the Commercial Operation Date until expiry of the Supply Term, the Supplier must, at its sole cost:

6.1.1 procure, maintain and renew all Government Approvals required to:

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6.1.1.1 own, operate, maintain and repair (including remedying defects in) the Facility and connect the Facility to the Existing Facility;

6.1.1.2 generate Energy, and supply Energy to the Point of Delivery; and

6.1.1.3 perform its other obligations under this Agreement and Applicable Laws; and

6.1.2 operate, maintain and repair (including remedying defects in) the Facility:

6.1.2.1 in accordance with each Scheduled Outage Plan, the Regulatory Framework and this Agreement;

6.1.2.2 so as to ensure that the Facility is available for service and, where appropriate, for operation in parallel with the System;

6.1.2.3 so as to minimize any disruption to the operation of the Facility caused during any periods of maintenance and repair; and

6.1.2.4 so as to maximize the generation and export of Energy to the Buyer under this Agreement.

Records

6.2 During the Supply Term and for the period of three (3) years thereafter, the Supplier must maintain complete books and accurate records ("**Records**"), including:

6.2.1 books and records necessary to substantiate that:

6.2.1.1 all invoices and other charges submitted by the Supplier to the Buyer for payment were valid and proper; and

6.2.1.2 no payments have been made, directly or indirectly, by or on behalf of the Supplier to or for the benefit of any employee or agent of the Buyer who may reasonably be expected to influence the Buyer's decision to enter into this Agreement, or the amount to be paid by the Buyer under this Agreement;

6.2.2 an up-to-date operating log, in electronic format, with records of Energy generation for each clock hour;

6.2.3 records in respect of changes in operating status, Scheduled Outages, emergencies and other forced outages;

6.2.4 records in respect of real-time meteorological data and Energy production data for the Facility; and

6.2.5 all other data required for the purposes of the operation of the Facility and the proper administration of this Agreement, including records necessary for billing and payments and such records as may be required by Good Utility Practice or Government Authorities in the prescribed format.

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6.3 All Records must be maintained in accordance with IFRS, in so far as they may be applicable to the relevant Record.

6.4 All records of the Supplier for the operation of the Facility must be maintained at the Supplier's principal corporate offices or on the premises at the Facility.

6.5 The Buyer or any of its Representatives may by not less than 5 (five) Business Days' notice examine the Records and the Supplier must make available any Records relating to the Facility or the transactions contemplated by this Agreement.

Access

6.6 The Buyer grants the Supplier and its Personnel a non-exclusive right to access the Site using reasonable routes over the Site as reasonably required for the purposes of this Agreement, including to allow the Supplier to install, repair, maintain, operate, remove and replace any part of the Facility.

6.7 Subject to clause 6.8, the Buyer must ensure the Supplier's access to the Site is safe, convenient and unhindered.

6.8 Upon gaining access to the Site, the Supplier will comply, and ensure compliance of its Personnel with any reasonable procedures, including site safety and security procedures, provided to the Supplier by the Buyer in accordance with Clause 24 (*Health and Safety*).

6.9 The Supplier will use its best endeavours to give the Buyer reasonable notice of its intention to enter the Site except:

6.9.1 where entry is during business hours for the purpose of inspecting the Metering Equipment;

6.9.2 if necessary to prevent substantial loss or damage being suffered by the Buyer or Supplier, or to carry out repairs in accordance with Clause 6.1; or

6.9.3 in the case of an emergency.

6.10 The Buyer grants the Supplier a non-exclusive access and use right over, and for the use and enjoyment of, those parts of the Site where the Facility is to be constructed. This access and use right will commence from the Effective Date.

6.11 The access and use right will continue until the earlier of:

6.11.1 the Expiry Date; or

6.11.2 the Termination Date,

provided that the Supplier may continue to access the Site to carry out its obligations in clause 14 to deactivate and remove the Facility.

6.12 Each Party shall be liable to the other Party for all claims, damages, losses and expenses that the other Party may suffer or incur in respect of bodily injury or death and damage to or loss

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of any third party property (including the Site) to the extent that it is attributable to any negligence or breach of contract by the Party.

Supplier Obligations in respect of the Site

6.13 When the Supplier or its Personnel access the Site, the Supplier will at all times, comply with health and safety requirements as set out in Clause 24, keep the Site clean and tidy and regularly remove rubbish and surplus materials from the Site.

6.14 The Supplier shall take a detailed record of the condition of the Site at the start of the Agreement Term.

6.15 In the event the Supplier removes any part of the Facility, the Supplier will:

6.15.1 record the condition of the Site prior to and after removal; and

6.15.2 leave the Site in no worse condition (taking into account fair wear and tear) than as recorded at the start of the Agreement Term including repairing any holes, cracks and leaks in the roof or any walls caused by the removal of any part of the Facility.

6.16 Any obligation on the Supplier under this Agreement to perform or arrange repairs is limited to such repairs as are necessary to ensure that the Site is left in no worse condition (taking into account fair wear and tear) than at the start of the Agreement Term and excludes damage which is the inevitable consequence of the installation of the Facility and any aesthetic damage such as scratching or fading. The Supplier is obliged to repair any holes, cracks and leaks in the roof caused by the removal of any part of the Facility.

6.17 The Supplier must comply with the Regulatory Framework and all relevant Government Approvals, permits, and licences applicable to the Supplier during the Agreement Term. Any works performed by the Supplier in relation to the Facility (including during the installation, testing, commissioning, operation, maintenance, repair, replacement and removal of any part of the Facility) will be consistent with the Regulatory Framework.

Costs

6.18 For clarity, and subject to clause 6.20, the Supplier is solely responsible for, and must bear, any and all costs and expenses associated with:

6.18.1 the development, design, financing, construction, commissioning, testing, operation, maintenance and repair of the Facility;

6.18.2 the generation, export, distribution and sale of Energy; and

6.18.3 complying with the Regulatory Framework and procuring, maintaining and renewing all Government Approvals required for purposes set out in clause 6.1.1.

6.19 If either Party ("**Paying Party**") is required to pay any costs and/or expenses that are the other Party's ("**Non-Paying Party**") responsibility under this Agreement, then the Non-Paying Party must reimburse the Paying Party for such costs and expenses within thirty (30) days of receipt of an undisputed invoice in respect of such costs and/or expenses.

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6.20 In the event that the Buyer requires the Supplier to undertake extra measures in terms of Work Health and Safety Legislation, and the health and safety, security and other policies of the Buyer, in respect of the construction and operation the Facility that are in addition to generally accepted market standards, including specifically the costs associated with certifying roofs as Safe Roofs as defined in the Buyer's safety requirements, the costs of any such extra measures shall be for the account of the Buyer. The costs shall, at the election of the Buyer, be payable either in once off payment or through an adjustment to the Escalating Price.

Buyer's Obligations in respect of the Site

6.21 The Buyer must not erect buildings, structures or flora that would overshadow or otherwise block access of sunlight to the Facility and shall take all Commercially Reasonable Efforts as necessary to prevent any other third party from erecting buildings, structures or flora that would overshadow or otherwise block access of sunlight to the Facility.

6.22 The Buyer must not conduct activities on, in or about the Site that have the reasonable likelihood of causing damage, impairment or otherwise adversely affecting the Facility or the Energy output.

6.23 The Buyer shall remain responsible for the maintenance of the Site during the Agreement Term, which shall include maintaining the rooftop on which the Facility is installed provided that the Buyer shall not affect any maintenance or repair works on the Site which may have an adverse effect on the Facility without the Supplier's prior written consent.

6.24 The Buyer must make Commercially Reasonable Efforts to ensure the security of the Facility, including commercially reasonable monitoring of the Site and provision of its normal security practices and policies that are applicable to the Site.

6.25 The Buyer shall advise the Supplier as soon as is reasonably possible upon becoming aware of any damage to, or theft of a Facility.

7 SALE OR RELOCATION OF SITE

7.1 If the Buyer intends to dispose of or sell the Site, the Buyer will give written notice to any sales agents and prospective purchasers of the Site about this Agreement and provide the new purchaser's details to the Supplier.

7.2 The Buyer will give the Supplier at least ninety (90) days' prior written notice in which it informs the Supplier of which one or more of the following options is applicable:

7.2.1 that the new purchaser intends to enter into an agreement with the Supplier on the same terms and conditions as this Agreement, for the balance of the Agreement Term, subject to it passing title checks and having:

7.2.1.1 at least the same or similar financial standing; or

7.2.1.2 it has an investment grade credit rating as determined by Moody's or Standard and Poor's,

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in which case the Supplier may with written consent, agree for the Buyer to transfer its rights and obligations to such new purchaser, which consent shall not be unreasonably withheld. This Agreement shall terminate on the date on which the new agreement is entered into without any termination payment being due by the Buyer to the Supplier;

7.2.2 the Buyer requests that the Supplier relocate the Facility to another property owned by the Buyer. The Buyer agrees to pay the reasonable costs incurred in relocating and reinstalling the Facility, including the cost of Deemed Energy up to the date the Facility reaches its commercial operation date (being the date analogous to the Commercial Operation Date in this Agreement) at the relocated property. If the Parties agree to a relocation of the Facility, this Agreement will continue on the same terms except for such amendments to this Agreement as may be required to take into account the change to the location of the Facility;

7.2.3 an offer to purchase the Facility in accordance with clause 15; and

7.2.4 termination of this Agreement for convenience if clause 3.3.2 is applicable and pay the Early Termination Payment to the Supplier.

7.3 In respect of clause 7.2.2, the Supplier shall be entitled to conduct an assessment on the new location to assess the suitability of the new location and the physical conditions of the rooftops and structures and the Parties shall as soon as reasonably possible meet in good faith with a view to agreeing the terms and conditions of the relocation of the Facility and such amendments to this Agreement as may be required to take into account the change to the location of the Facility.

7.4 If the Buyer vacates the Site but continues to own it, it may elect to terminate this Agreement for convenience and make the Early Termination Payment.

7.5 In the event that the Buyer disposes, sells or vacates the Site as contemplated in this clause 7 and:

7.5.1 the Supplier, acting reasonably, does not agree to the entering into of a new agreement with a new purchaser as contemplated in clause 7.2.1;

7.5.2 the Parties are unable, acting reasonably, to agree to a relocation of the Facility as contemplated in clause 7.2.2;

7.5.3 the Buyer does not purchase the Facility in accordance with clause 15; and

7.5.4 the Buyer does not terminate this Agreement for convenience, as contemplated in clause 7.2.4,

this will be treated as a Buyer Event of Default under clause 13.3 and the Buyer shall be liable to pay the Buyer Termination for Default Amount in accordance with clause 13.

8 CAPACITY AND GENERATION

Certification of Capacity

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8.1 As a precondition to achieving Commercial Operation, the Supplier must complete all processes and procedures addressed in the commissioning checklist attached to the Core Conditions as SCHEDULE 7: .

Annual Generation Forecast

8.2 The Supplier must provide an Annual Generation Forecast to the Buyer in the Approved Form for each Contract Year (other than the first Contract Year) by no later than 1 December in the prior Contract Year (but if that date is earlier than 2 (two) Months after the Commercial Operation Date, then by the date that is 2 (two) Months after the Commercial Operation Date). In the case of the first Contract Year, the Supplier must provide the Annual Generation Forecast to the Buyer within 2 (two) Months after the Commercial Operation Date.

8.3 In preparing an Annual Generation Forecast the Supplier must take into account any written information which the Buyer provides to it up to two weeks prior to the due date for the Annual Generation Forecast, regarding any Scheduled partial or complete shutdown of the Existing Facility planned for the following Contract Year.

8.4 Other than as expressly stated otherwise in this Agreement, the Annual Generation Forecast is a non-binding, good faith estimate only.

8.5 By 1 February of each Contract Year (other than the first Contract Year) the Supplier must give the Buyer a report in the Approved Form in respect of the prior Contract Year summarizing, among other things, the Facility's actual Energy output and Scheduled Outages on a Month-by-Month basis compared with its estimated Energy output as detailed in the Annual Generation Forecast it was obliged to prepare for that Contract Year.

8.6 If the actual Energy output reported in clause 8.5 is less than that predicted by the Supplier in the relevant Annual Generation Forecast for that Contract Year, the Supplier must include in such report to the Buyer a detailed report on the events or circumstances resulting in the difference and all rectification plans implemented or planned to avoid re-occurrence of the events or circumstances.

8.7 The Supplier shall provide the Buyer 40 (forty) business days from the date of receipt of the report to dispute all or part of the report. Thereafter, the report shall be as conclusive except in the case of manifest error.

Minimum Annual Generation

8.8 If the Supplier becomes aware of any circumstance that is reasonably likely to result in Sent Out Energy for any Contract Year being materially less than the Minimum Annual Generation for that Contract Year it must:

8.8.1 use Commercially Reasonable Efforts to avoid or mitigate the relevant circumstance; and

8.8.2 promptly give a notice to the Buyer setting out:

8.8.2.1 details of the relevant circumstances;

8.8.2.2 their expected impact on Sent Out Energy for the Contract Year; and

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8.8.2.3 details of the steps the Supplier is taking, or which it proposes to take, to avoid or limit such impact.

Failure to achieve Minimum Annual Generation

8.9 The Buyer may, according to the provisions of clause 13, terminate this Agreement if for any three (3) Contract Years in total during the term of this Agreement:

8.9.1 the Sent Out Energy for any three Contract Years falls below the Minimum Annual Generation (after any reduction under clause 8.11) for such Contract Year; and

8.9.2 the Supplier has failed to comply with:

(i) clause 8.8.18.8.1. during such Contract Year(s); and/or

(ii) clause 8.8.2 within 20 (twenty) Business Days after the end of that Contract Year, and

8.10 Any Dispute regarding the matters contemplated by clause 8.9 shall be resolved by arbitration pursuant to clause 15.2.

Reduction in targets

8.11 The Minimum Annual Generation for any Contract Year will be reduced by any Deemed Energy for such Contract Year, and, without double counting, to reasonably account for any reductions in Sent Out Energy from the Facility during the Contract Year caused by:

8.11.1 the Supplier reducing Sent Out Energy:

8.11.1.1 for safety reasons; or

8.11.1.2 in the event of an emergency, or

8.11.1.3 to protect the Facility from damage,

provided the Supplier was acting in accordance with Good Utility Practice and the Regulatory Framework and the safety issue, emergency or reduction is not caused or contributed to by the Supplier or its Personnel;

8.11.2 the unavailability of the Existing Facility to accept Energy from the Facility where such unavailability was not notified to the Supplier by the Buyer prior to the preparation of the Annual Generation Forecast and is not caused or contributed to by the Supplier or its Personnel; or

8.11.3 Force Majeure Events;

8.11.4 a shutdown of the Facility as a result of a relocation of the Facility attributable to the Buyer; and

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8.11.5 any breach by the Buyer of its obligations under this Agreement, including but not limited to, a breach of clauses 6.21 to 6.25.

Shortfall Energy

8.12 If the aggregate Sent Out Energy for any Contract Year is less than the Minimum Annual Generation for that Contract Year (after any reduction under clause 8.11) (that shortfall (in MWh) being **Shortfall Energy**), then the Supplier must give the Buyer written notice of:

8.12.1 the Shortfall Energy; and

8.12.2 sufficient information for the Buyer to verify the Supplier's calculation of Shortfall Energy for that Contract Year,

within 20 (twenty) Business Days of the end of that Contract Year.

8.13 If the Buyer disagrees with the Supplier's calculation in clause 8.12, the Buyer may refer the disagreement for determination under clause 17.

8.14 The Supplier must within 40 (forty) Business Days after the end of the Contract Year reimburse to the Buyer the Cost of Replacement Energy for the Shortfall Energy.

Scheduled Outages

8.15 The Supplier must provide a Scheduled Outage Plan to the Buyer in the Approved Form for each Contract Year (other than the first Contract Year) by no later than 1 October in the prior Contract Year (but if that date is earlier than 2 (two) Months after the Commercial Operation Date, then by the date 1 (one) Month after the Commercial Operation Date) recording all Scheduled Outages for the relevant Contract Year (**Scheduled Outage Plan**). In the case of the first Contract Year, the Supplier must provide the Scheduled Outage Plan to the Buyer within 1 (one) Month after the Commercial Operation Date.

8.16 The Supplier must include in each Scheduled Outage Plan:

8.16.1 the start date, end date and purpose of each proposed maintenance activity for the Facility; and

8.16.2 details of any reduction in available capacity anticipated in respect of each maintenance activity.

8.17 The Supplier and the Buyer must consult in good faith to agree any amendments proposed by the Buyer or the Supplier to a Scheduled Outage Plan and no Party may unreasonably withhold its consent to any amendments requested by the other Party.

8.18 The Supplier must comply with each Scheduled Outage Plan, as approved by the Buyer.

8.19 The Supplier must use Commercially Reasonable Efforts to Schedule all Scheduled Outages during periods of low forecast Energy generation and low forecast Buyer demand.

8.20 The Supplier must comply with all Network Operator's and other Government Authorities' scheduling and outage reporting requirements, as revised from time to time.

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8.21 Any Dispute regarding the matters contemplated by this clause 8 must be referred to the Independent Expert under clause 17.

9 SALE AND PURCHASE

9.1 The Supplier must sell and the Buyer must buy, at the Escalating Price, all of the Sent Out Energy delivered to the Point of Delivery and consumed by the Buyer on the terms and conditions set out in this Agreement.

9.2 Property and title in, and risk of loss with respect to, the Sent Out Energy passes to the Buyer upon delivery to the Point of Delivery for all Energy consumed by the Buyer.

9.3 The Supplier grants to the Buyer for the duration of the Supply Term the sole and exclusive right to purchase all of the Energy at the Escalating Price (as may be adjusted in accordance with the terms of this Agreement).

9.4 The Supplier undertakes that the Energy sold to the Buyer in accordance with this Agreement is sold free from all charges, Liens (other than Permitted Liens), other encumbrances and third party claims.

9.5 The Parties must, acting in accordance with Good Utility Practice (and, where appropriate, in co-operation with each other), do all such reasonable things (including anything which may lawfully be required by any Issuing Authority, Government Authority or Government Approval) that are directly or indirectly required to ensure that the Sent Out Energy is, insofar as is reasonably practicable, maximized.

9.6 Deemed Energy

9.7 The Buyer will pay the Supplier for Deemed Energy, provided that no Deemed Energy will be payable if subject to clause 9.8, (a) Energy cannot be exported to the Existing Facility because of a Scheduled shutdown of the Existing Facility notified to the Supplier by the Buyer in terms of clause 8.3, or (b) if the Existing Facility is unable to receive Energy as a result of any Force Majeure Event ("**Billable Deemed Energy**").

9.8 For the purpose of clause 9.7, the Buyer shall not be entitled to claim relief from the obligation to pay Deemed Energy in the event that the Existing Facility has been shutdown or otherwise unable to receive Energy for whatever reason, save where arising from an act or omission by the Supplier, (including as a result of a Force Majeure Event for a period of more than 7 (seven) Days in the relevant Contract Year.

10 TAXES

10.1 The Supplier must pay or cause to be paid all taxes arising from or in connection with:

10.1.1 the Facility (including any components);

10.1.2 the generation, sale, distribution, transmission, delivery or trading of the Sent Out Energy and the Deemed Energy; and

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10.1.3 the transactions contemplated by this Agreement (including but not limited to corporate taxes, personal income tax, fringe benefits tax, payroll tax, stamp duty, withholding tax, PAYE, turnover tax and excise and import duties, and any Subcontractor's taxes).

10.2 If a Party is required to remit or pay taxes that are the other Party's responsibility under this Agreement, the Party responsible for the taxes must promptly reimburse the other Party for such taxes.

10.3 For clarity, nothing in this clause 10 requires any Party to reimburse the other Party for any taxes measured in whole or in part by net income or any commercial activity tax or similar taxes of such other Party.

10.4 The Parties must cooperate (and must cause their respective Affiliates and Personnel to cooperate) with each other and with each other's agents as and to the extent reasonably requested and reasonably necessary in connection with tax matters relating to this Agreement, including:

10.4.1 preparing and filing any tax return, amended tax return or claim for refund;

10.4.2 determining liabilities for taxes or a right to refund of taxes;

10.4.3 any administrative or judicial proceeding in respect of taxes assessed or proposed to be assessed; and

10.4.4 in order to minimize tax exposure, provided that neither Party is obligated to incur any financial burden to reduce taxes for which the other Party is responsible under this Agreement.

VAT

10.5 All amounts payable by either party (**the Paying Party**) to the other party (**the Receiving Party**) in terms of this Agreement are expressed exclusive of VAT. Accordingly, in addition to such amounts the Paying Party shall pay to the Receiving Party an amount equal to such VAT as may be applicable.

Withholding Taxes

10.6 If the Buyer is required in its opinion to withhold any amount in respect of tax from a payment to be made to the Supplier under this Agreement, it is entitled to do so and such withholding and payment to the relevant taxing authority will be a good discharge of its obligation to pay the relevant amount to the Supplier. In the event that the Buyer pays an amount to the Supplier without withholding an amount in respect of tax, the Buyer will be indemnified on demand by the Supplier for any loss suffered by it as a result of failing to withhold.

11 CHANGE IN LAW

11.1 If at any time during the Agreement Term:

11.1.1 a Change in Law occurs; and

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11.1.2 that Change in Law:

11.1.2.1 prevents or materially interferes with the intended operation of the transactions contemplated by this Agreement; or

11.1.2.2 in the reasonable opinion of either Party, will increase or decrease the costs incurred by the Supplier by more than 10% (ten percent) after the Commercial Operation Date of operating and maintaining the Facility over the remaining Agreement Term (**Qualifying Change in Law**),

the following will apply:

11.1.3 for a Change in Law under clause 11.1.2.1 the Parties will:

11.1.3.1 use Commercially Reasonable Efforts to mitigate the effect of the Change in Law; and

11.1.3.2 consider and negotiate in good faith any specific amendment to this Agreement requested by a Party so as to preserve the intended operation and effect of this Agreement and the relative position of the Parties as at the Effective Date.

11.1.4 for a Qualifying Change in Law under clause 11.1.2.1:

11.1.4.1 the Supplier must provide a notice (**Qualifying Change in Law Notice**) to the Buyer within 10 Business Days of becoming aware of the Qualifying Change in Law which sets out:

(a) reasonable details of the Qualifying Change in Law and the circumstances that gave rise to it;

(b) its best estimate of the adjustment to the costs to be incurred by it as a result of the Qualifying Change in Law (together with all supporting information reasonably required to verify that estimate); and

(c) the change in the Escalating Price and consequential adjustments to the Early Termination Payment, Supplier Termination for Default Amount and Buyer Termination for Default Amount which the Supplier considers is required to pass through or reimburse to the Buyer the net impact of the Qualifying Change in Law; and

11.1.4.2 the Supplier will

use Commercially Reasonable Efforts to mitigate any increase in the Supplier's costs; and

the Parties will agree an amendment to the Escalating Price to pass through the increase or decrease in the Supplier's cost

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of owning and operating the Facility determined in accordance with clause 11.2.

11.1.5 If the Parties are unable to agree:

11.1.5.1 any changes to this Agreement under clause 11.1.3.2; or

11.1.5.2 an adjustment to the Escalating Price under clause 11.1.4.2, and consequential adjustments to the Early Termination Payment, Supplier Termination for Default Amount and Buyer Termination for Default Amount within 60 (sixty) Business Days of receiving the Qualifying Change in Law Notice,

then either Party may refer that disagreement to be resolved under clause 17.

Qualifying Change in Law

11.2 The Parties must apply the following valuation principles in agreeing the change to the Escalating Price:

11.2.1 the Escalating Price adjustment reflects the net present value of the relevant increase in the Supplier's costs during the Agreement Term applying the Discount Rate to calculate the net present value and the Escalating Price adjustment assumes generation by the Facility at the Target Annual Generation in each Contract Year, or the remainder of the Agreement Term or part thereof;

11.2.2 the increase or decrease in the Supplier's costs associated with the Qualifying Change in Law must be discounted for any related benefit or cost associated with the relevant Qualifying Change in Law; and

11.2.3 if the most efficient response to the Change in Law is capital expenditure by the Supplier, the cost of that capital expenditure to be passed through to the Buyer must be allocated on a proportional basis between the remaining Agreement Term, the economic life of the Facility and the useful economic life of the relevant capital item.

11.2.4 The consequential adjustments to the Early Termination Payment, Supplier Termination for Default Amount and Buyer Termination for Default Amount will be equal to the adjustment in the Escalating Price, accumulated over the remaining Agreement Term, discounted at the Weighted Average Cost of Capital.

11.3 Any adjustment to the Escalating Price and consequential adjustments to the Early Termination Payment, Supplier Termination for Default Amount and Buyer Termination for Default Amount determined under clause 11.2 will be final and conclusive and may not be subsequently re-opened or challenged by a Party.

11.4 Any Dispute regarding the matters contemplated by this clause 11 must be referred to the Independent Expert under clause 17.

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12 FORCE MAJEURE

Definition of Force Majeure Event

12.1 **Force Majeure Event** means any event or circumstance that:

12.1.1 is beyond the reasonable control of, and without the fault or negligence of, the Party claiming Force Majeure or its Personnel (**Claiming Party**);

12.1.2 through the exercise of due diligence and Good Utility Practices, the Claiming Party or its Personnel is or would have been unable to overcome or avoid;

12.1.3 prevents or delays the Claiming Party from complying with any obligation under this Agreement; and

12.1.4 includes the following events or circumstances, but only to the extent they satisfy the conditions in clause 12.1.1, clause 12.1.2 and clause 12.1.3 (inclusive):

12.1.4.1 acts of God, sudden actions of the elements such as floods, earthquakes, hurricanes or tornadoes;

12.1.4.2 any delay in obtaining any Government Approval, provided that the Claiming Party has timeously complied with all of its obligations in respect of the obtaining of such Government Approval;

12.1.4.3 lightning, fire, ice storms or explosions;

12.1.4.4 sabotage or vandalism;

12.1.4.5 terrorism, war or riots;

12.1.4.6 blockades or insurrection;

12.1.4.7 national or regional strike, slow down or labor disruptions or Site-specific strikes which are unwarranted and fall outside of the reasonable commercial control of the Buyer and the Buyer has used Commercially Reasonable Efforts to avoid such industrial action; or

12.1.4.8 unlawful actions or inactions by any Government Authority.

12.2 For the Supplier, Force Majeure Event does not include:

12.2.1 any acts or omissions of any third party, including any vendor, materialman, customer or supplier of the Supplier;

12.2.2 the unavailability of labor, equipment, materials or other resources, unless such unavailability is caused by a Force Majeure Event;

12.2.3 any full or partial curtailment in the output of Sent Out Energy from the Facility that is caused by:

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12.2.3.1 a failure to maintain the Facility in accordance with the Regulatory Framework;

12.2.3.2 a mechanical or equipment breakdown at the Facility;

12.2.3.3 a defect in any design, workmanship, equipment or other component of the Facility;

12.2.3.4 a mishap at the Facility (unless such mishap is caused by a Force Majeure Event); or

12.2.3.5 conditions attributable to normal wear and tear;

12.2.4 intermittency or non-availability of the resource supply to generate electricity from the Facility, including due to weather or climate conditions; and

12.2.5 failure to apply for, obtain, maintain or renew any Government Approvals.

Applicability of Force Majeure

12.3 Neither Party is responsible or liable for any delay or failure in its performance under this Agreement, nor will any delay, failure or other occurrence or event become an Event of Default, to the extent such delay, failure, occurrence or event is substantially caused by a Force Majeure Event, provided that:

12.3.1 the Claiming Party gives the other Party prompt written notice describing the particulars and offering reasonable evidence to support the occurrence of the Force Majeure Event;

12.3.2 the suspension of performance is of no greater scope and of no longer duration than is required by the Force Majeure Event;

12.3.3 the Claiming Party proceeds with reasonable diligence and Good Utility Practice to remedy its inability to perform and provides weekly progress reports to the other Party describing actions taken to end the Force Majeure Event; and

12.3.4 when the Claiming Party is able to resume performance of its obligations under this Agreement, the Claiming Party gives the other Party written notice to that effect.

12.4 Notwithstanding anything to the contrary in this Agreement, the existence of a Force Majeure Event will not relieve the Claiming Party from any of its other obligations under this Agreement to the extent that performance of such other obligation is not precluded by the Force Majeure Event.

Limitations on Effect of Force Majeure

12.5 The occurrence of a Force Majeure Event will not extend the Agreement Term or Supply Term of this Agreement.

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12.6 Where a Force Majeure Event continues for a continuous period of 365 Days, either Party may, by at least 10 (ten) Business Days' prior written notice, terminate this Agreement and neither Party shall be liable to other Party, save that any termination of this Agreement shall be without prejudice to any claims, rights or obligations of the Parties that accrued prior to the date of termination.

13 DEFAULT AND TERMINATION FOR DEFAULT

13.1 Termination for Default Date

If an Event of Default under this Agreement has occurred and is continuing and the Cure Period (if any) has expired, the Non-Defaulting Party may by at least 30 (thirty) Days prior written notice to the Defaulting Party terminate this Agreement (**Termination for Default Date**).

13.2 Supplier Events of Default

A Supplier **Event of Default** occurs if:

13.2.1 the Supplier commits an Act of Insolvency;

13.2.2 the Supplier fails to make when due any undisputed payment under this Agreement (net of outstanding amounts due to the Supplier and any other rights of set-off the Supplier may have under this Agreement) if not cured within the Cure Period;

13.2.3 the Supplier fails to achieve Commercial Operation by the Commercial Operation Longstop Date;

13.2.4 any of the following occur and are not cured within the Cure Period:

13.2.4.1 the Supplier's failure to maintain or renew any Government Approvals; or

13.2.4.2 the Supplier's breach of a material provision of this Agreement (except to the extent the same constitutes a separate Event of Default of the Supplier under a specific provision of this clause 13.2);

13.2.5 any of the following occur and are not cured within the Cure Period:

13.2.5.1 any representation, warranty or certification made by the Supplier in or under this Agreement is false or misleading when made or ceases to remain true during the Agreement Term; or

13.2.5.2 the Supplier's Abandonment.

13.3 Buyer Events of Default

A Buyer **Event of Default** occurs if:

13.3.1 the Buyer commits an Act of Insolvency;

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13.3.2 failure of the Buyer to make when due any undisputed payment owing to the Supplier (net of outstanding amounts due to the Buyer from the Supplier and any other rights of set-off that the Buyer may have under this Agreement), and provided that the Supplier has complied with the Buyer's source to pay process and is not cured within the Cure Period;

13.3.3 termination in accordance with clause 7.5;

13.3.4 termination in accordance with clause 20.6; and

13.3.5 the Buyer's breach of a material provision of this Agreement (except to the extent the same constitutes a separate Event of Default of the Buyer under a specific provision of this clause 13.3), which is not cured within the Cure Period.

13.4 Following the Termination for Default Date, the Non-Defaulting Party is entitled to recover from the Defaulting Party, and the Defaulting Party is liable to the Non-Defaulting Party for, the Supplier Termination for Default Amount or the Buyer Termination for Default Amount, as applicable.

13.5 Termination for Default Amount

13.5.1 Following the issue of the notice in clause 13.1, the Non-Defaulting Party must deliver a written statement explaining in reasonable detail the calculation of the Termination for Default Amount. The Termination for Default Amount is due and payable within 120 (one hundred and twenty) Days after the delivery of such notice.

13.5.2 Any Dispute regarding the Termination for Default Amount must be referred to the Independent Expert under clause 17.

13.5.3 If for any reason the Buyer has not paid the Termination for Default Amount, the Facility shall remain the property of the Supplier.

13.6 The provisions of this clause 13 shall, as may be required and if agreed to by the Buyer which agreement shall not be unreasonably withheld, be incorporated into a direct agreement between the Buyer, Financing Party and the Supplier with the Buyer obligations requirements in the direct agreement not exceeding those of clause 13.

14 SUPPLY, DEACTIVATION AND REMOVAL AFTER TERMINATION OR EXPIRY

14.1 Following the end of the Agreement Term or termination of this Agreement, as applicable:

14.1.1 the Buyer will, in the absence of a new agreement between the Supplier and the Buyer, cease making payments for Sent Out Energy to the Supplier; and

14.1.2 upon Buyer's request the Supplier must deactivate the Facility as soon as reasonably possible and remove the Facility within 60 (sixty) Days, and notwithstanding the termination of this Agreement, the Supplier agrees to continue to be bound by the obligations placed on it under this clause and clauses 6, 19, 24 of this Agreement until the Supplier has fully removed the Facility, and

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the Buyer shall be entitled to retain a bank guarantee from the Supplier until this clause has been complied with.

15 PURCHASE OF THE FACILITY

15.1 Payment by the Buyer of the Early Termination Payment, as set out from year 8 (eight) in SCHEDULE 4: , or the Buyer Termination for Default Amount, will constitute a deemed purchase of the Facility. Once payment is made in full to the Supplier, ownership of the Facility will transfer to the Buyer. This Agreement will end after the Supplier receives the full Payment.

15.2 Upon ownership of the Facility transferring to the Buyer, the Supplier's O&M Contract will transfer to the Buyer on a *mutatis mutandis* basis.

16 DISPUTE RESOLUTION

16.1 In the event of any cause of action, claim or dispute that either Party may have against the other arising out of or relating to this Agreement (**Dispute**), either Party may submit a Dispute Notice to the other Party. Subject to clause 17, within 10 (ten) Days following the delivered date of the Dispute Notice:

16.1.1 each Party must appoint a member of its senior management with authority to irrevocably bind such Party (individually, a **Party Representative**, together, the **Parties' Representatives**); and

16.1.2 the Parties' Representatives will meet, negotiate and attempt in good faith to resolve the Dispute quickly, informally and inexpensively.

16.2 In the event the Parties' Representatives cannot resolve the Dispute within 30 (thirty) Days after commencement of negotiations, either Party may refer the matter to arbitration.

16.3 Failing amicable resolution of a Dispute (other than an Expert Dispute) and after having exhausted the procedure set out in Clause16.1 above, shall be referred to and finally resolved by arbitration administered by the London Court of International Arbitration ("**LCIA**") under the LCIA rules for arbitration, which rules are deemed to be incorporated by reference into this Agreement.

16.3.1 There shall be one arbitrator.

16.3.2 The seat, or legal place, of arbitration shall be London.

16.3.3 The language to be used in the arbitral proceeding shall be English.

16.4 The decision of the arbitrator shall be final and binding on the Parties to the arbitration. A decision, which becomes final and binding, may be made an order of court at the instance of any Party to the arbitration.

16.5 Nothing herein contained shall prevent or prohibit any Party from applying to the appropriate court for interim relief.

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16.6 The provisions of this Clause 15.2 shall be severable from every other part of this Agreement and shall survive the termination or cancellation for whatever reason of this Agreement, notwithstanding that the rest of this Agreement may be void or voidable.

16.7 While any *bona fide* Dispute is pending, the Parties must continue to diligently perform their obligations under this Agreement notwithstanding such Dispute.

17 INDEPENDENT EXPERT

17.1 This clause 17 will only apply between the Parties in respect of a Dispute where this Agreement expressly provides that the Dispute can be referred to an Independent Expert under this clause 17.

17.2 If this Agreement provides that a Dispute is to be referred to an Independent Expert, the Parties must appoint (subject to clause 17.3) an independent expert to which the Dispute will be referred (**Independent Expert**) by mutual agreement within 5 (five) Business Days after a notice referring a Dispute to an Independent Expert being given (or such longer period as the Parties may agree).

17.3 The Independent Expert appointed under clause 17 must:

17.3.1 be a multinational accounting, engineering, legal or management consulting firm with proven qualifications, commercial and practical experience in the area of the Dispute;

17.3.2 have no interest or duty which conflicts or may conflict with his/her function as an Independent Expert, and the Expert will be required to fully disclose any such interest or duty before his/her appointment; and

17.3.3 not be an employee or former employee of any of the Parties or any of their Affiliates.

17.4 The Parties must make their submissions to the Independent Expert within 20 (twenty) Business Days of the Independent Expert's appointment (or, in the case of any Invoice which is the subject of a Dispute, 15 (fifteen) Business Days).

17.5 Without affecting the generality of this clause 17, the Parties must use all reasonable endeavours to make sure that any matter in Dispute is heard and resolved as expeditiously as possible, especially if the existence of the Dispute may adversely affect the smooth and efficient operation of the Facility.

17.6 The Independent Expert will inform the Parties of its decision in writing and its reasons for its decision within 15 (fifteen) Business Days of the closing of submissions made to it by the Parties.

17.7 The Independent Expert will act as an expert and not as an arbitrator.

17.8 In the absence of fraud or manifest error, each Party agrees that any decision or award made by an Independent Expert under this clause 17 will be final and binding.

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17.9 In the event that the Parties are unable to agree on an Independent Expert as required in terms of Clause 17.2., the Parties shall refer the matter to the applicable regulatory body in the United Kingdom governing the area of expertise of the required Independent Expert, for nomination.

18 REPRESENTATIONS AND WARRANTIES

Supplier's Representations and Warranties

18.1 The Supplier represents and warrants that:

as at the Execution Date:

18.1.1 the Supplier is a limited liability company, duly organized, validly existing and in good standing under the laws of its incorporation;

18.1.2 the Supplier has all requisite limited liability company power and authority to conduct its business, to own its properties and to execute, deliver and perform its obligations under this Agreement;

18.1.3 the execution, delivery and performance of the Supplier's obligations under this Agreement by the Supplier have been duly authorized by all necessary limited liability company action, and do not and will not:

18.1.3.1 require any consent or approval by any governing body of the Supplier, other than that which has been obtained and is in full force and effect (evidence of which shall be delivered to Buyer upon its request);

18.1.3.2 violate any provision of Applicable Law currently in effect as it applies to the Supplier or the Facility (as applicable), the violation of which could have a material adverse effect on the ability of the Supplier to perform its obligations under this Agreement;

18.1.3.3 result in a breach or constitute a default under the Supplier's constitutional documents or under any other agreement relating to the management or affairs of the Supplier, the breach or default of which could reasonably be expected to have a material adverse effect on the ability of the Supplier to perform its obligations under this Agreement; or

18.1.3.4 result in or require the creation or imposition of any Lien (other than a Permitted Lien) upon or with respect to any of the assets or properties of the Supplier now owned or hereafter acquired, the creation or imposition of which could reasonably be expected to have a material adverse effect on the ability of the Supplier to perform its obligations under this Agreement;

18.1.4 this Agreement is a valid and binding obligation of the Supplier enforceable against the Supplier in accordance with its terms;

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18.1.5 the execution and performance of this Agreement will not conflict with or constitute a breach or default under any contract or agreement of any kind to which the Supplier is a party or any judgment, order, statute or regulation that is applicable to the Supplier or the Facility (as applicable); all Government Approvals or other action required by any Government Authority to authorize the Supplier's execution, delivery and performance of this Agreement have been duly obtained and are in full force and effect (other than those Government Approvals that can only be obtained after the Execution Date or the Commercial Operation Date, as applicable, in terms of Applicable Law);

18.1.6 the Supplier is in compliance with all Applicable Laws and regulations presently in effect, except for any non-compliance that, individually or in the aggregate, could not reasonably be expected to have a material effect on the business or financial condition of the Supplier or its ability to fulfill its commitments and obligations under this Agreement;

18.1.7 there is no pending or threatened litigation, arbitration or administrative proceeding that would reasonably be expected to have a material adverse effect on the Supplier's ability to perform its obligations under this Agreement or on the business, operations or financial condition of the Supplier;

18.1.8 the Supplier will promptly notify the Buyer of any Latent Condition that the Supplier becomes aware of; and

18.1.9 the installer engaged by the Supplier to install the Facility will be appropriately licensed and suitably qualified.

Buyer's Representations and Warranties

18.2 The Buyer represents and warrants as follows that as at the Execution Date:

18.2.1 it is a limited liability company duly organized, validly existing and in good standing under its laws of incorporation;

18.2.2 it has all requisite limited liability company power and authority to conduct its business, to own its properties and to execute, deliver and perform its obligations under this Agreement;

18.2.3 the execution, delivery and performance of its obligations under this Agreement have been duly authorized by all necessary limited liability company action, and do not and will not:

18.2.3.1 require any consent or approval by any governing body of the Buyer, other than that which has been obtained and is in full force and effect (evidence of which shall be delivered to the Supplier upon its request);

18.2.3.2 violate any provision of Applicable Law currently in effect having applicability to the Buyer, the violation of which could have a material adverse effect on the ability of the Buyer to perform its obligations under this Agreement;

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18.2.3.3 result in a breach or constitute a default under the Buyer's constitutional documents or under any other agreement relating to the management or affairs of the Buyer, the breach or default of which could reasonably be expected to have a material adverse effect on the ability of Buyer to perform its obligations under this Agreement; or

18.2.3.4 result in or require the creation or imposition of any Lien (other than a Permitted Lien or as may otherwise be contemplated by this Agreement) upon or with respect to any of the assets or properties of Buyer now owned or hereafter acquired, the creation or imposition of which could reasonably be expected to have a material adverse effect on the ability of Buyer to perform its obligations under this Agreement;

18.2.4 this Agreement is a valid and binding obligation of the Buyer enforceable against the Buyer in accordance with its terms;

18.2.5 the execution and performance of this Agreement will not conflict with or constitute a breach or default under any contract or agreement of any kind to which the Buyer is a party or any judgment, order, statute or regulation that is applicable to the Buyer;

18.2.6 it is responsible and liable for any Latent Conditions, including any structural integrity of the Existing Facility on which the Facility will be installed;

18.2.7 that it will maintain an effective arrangement with the Network Operator for sale of electricity from the national electricity market to the Buyer at the Site and must not do anything to cause that supply to be disconnected;

18.2.8 that it will not interfere with, delay or prevent the construction, testing and commissioning of the Facility and cause any delay in the Supplier reaching its Commercial Operation Date by the Target Commercial Operation Date; and

18.2.9 there is no pending or threatened litigation, arbitration or administrative proceeding that would reasonably be expected to have a material adverse effect on the Buyer's ability to perform its obligations under this Agreement or on the business, operations or financial condition of the Buyer.

19 INDEMNITY

19.1 Each Party (as applicable, an **Indemnifying Party**) agrees to indemnify, defend and hold harmless the other Party and its Affiliates and its and their directors, officers, employees and agents, and their respective successors and assigns (each, an **Indemnified Party**), from and against all direct claims, demands, losses, liabilities, penalties and expenses (including court judgments, administrative penalties, fines and reasonable attorneys' fees) for:

19.1.1 bodily injury or death to Persons and third-party property damage to the extent arising out of, resulting from or caused by a breach of this Agreement, violation of any Applicable Laws or by the negligence of the Indemnifying Party;

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19.1.2 with respect to the Supplier as the Indemnifying Party, bodily injury or death to Persons and third-party property damage at the Facility or Site to the extent arising out of, resulting from or caused by the acts, errors or omissions of the Supplier or its Personnel, Representatives or Affiliates; and

19.1.3 with respect to Buyer as the Indemnifying Party, bodily injury or death to Persons and third-party property damage at the Facility or Site to the extent arising out of, resulting from or caused by the acts, errors or omissions of Buyer or its Personnel, Representatives or Affiliates while on the Site.

19.2 Excluding the provisions of clause 19.1, nothing in this clause 19 enlarges or relieves any Party of any liability to the other Party for any breach of this Agreement.

19.3 The indemnification obligation contained in this clause 19 will apply notwithstanding any negligent or intentional acts, errors or omissions of the Indemnified Party but the Indemnifying Party's liability to pay damages to an Indemnified Party will be reduced in proportion to the percentage by which the Indemnifying Party's negligent or intentional acts, errors or omissions caused the damages.

19.4 Notwithstanding any provision to the contrary, neither Party will be indemnified for its losses arising from its sole negligence, intentional acts or willful misconduct.

19.5 These indemnity provisions will not be construed to relieve any insurer of its obligation to pay claims consistent with the provisions of a valid insurance policy.

19.6 Except as otherwise provided in this clause 19, in the event the Indemnifying Party is obligated to indemnify and hold an Indemnified Party harmless under this clause 19, the amount owing to the Indemnified Party shall be the amount of the Indemnified Party's actual loss net of any insurance proceeds received by the Indemnified Party from any unaffiliated insurance carrier following a reasonable effort by the Indemnified Party to obtain such insurance proceeds.

20 INSURANCE

20.1 On and from the Execution Date, the Parties must:

20.1.1 obtain, maintain and renew (or otherwise procure) the Insurances with an internationally reputable insurer that has an Acceptable Credit Rating; and

20.1.2 ensure such insurance cover complies with the requirements of this Agreement and Good Utility Practice.

20.2 Upon reasonable notice from the either Party, the other Party must promptly produce cover notes evidencing compliance with the requirements of this clause 20.

20.3 The insurance coverage in this clause 20 must:

20.3.1 be primary coverage without right of contribution from any insurance of the Buyer or any coverage otherwise available to the Supplier or to its Affiliates; and

20.3.2 not be deemed to limit the Supplier's liability under this Agreement.

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20.4 To the extent that the any Party obtains any proceeds from such Insurances, those proceeds must promptly be applied to the repair, replacement or making good of any damage, destruction or loss to the Facility including the Existing Facility the subject of the claim under such Insurances.

20.5 The Buyer shall, at its cost, obtain and maintain insurance as would be reasonably required for the Site, including all risk, public liability and workers compensation insurance, whether by third party insurance or through self-insurance, for its full replacement value against all insurable risks, including fire, theft, and public liability insurance.

20.6 If the Site or Existing Facility is damaged or destroyed (other than due to a Force Majeure Event) in a manner which affects the proper operation of the Facility and Buyer does not, within 180 (one hundred and eighty) Days of such damage or destruction, replace or repair the Site or request the relocation of the Facility, resulting in the Facility not being reinstated, this will be treated as a Buyer Event of Default under clause 13.3.

21 INTELLECTUAL PROPERTY

21.1 All Supplier IP remains the property of the Supplier or its associated companies.

21.2 All Supplier Developed IP vests exclusively on its creation in the Supplier. To the extent that it is not possible, by executing this Agreement, the Buyer assigns the Supplier all present and future rights the Buyer may have in the Supplier Developed IP, with effect from the date of its creation.

21.3 The Supplier will provide the Buyer with system diagrams and other necessary information for the Buyer to safely isolate the Facility in the event of an emergency at the Existing Facility.

22 RESPONSIBLE SOURCING POLICIES AND BUSINESS INTEGRITY

22.1 In this clause 22 the following capitalised terms shall have the meanings defined below:

22.1.1 **AB InBev's Global Responsible Sourcing Policy** shall mean the AB InBev Global Responsible Sourcing Policy as published by AB InBev and available at www.ab-inbev.com.

22.1.2 **AB InBev's Anti-Bribery Policy for Suppliers** shall mean the AB InBev Supplier Anti-Corruption Policy as published by AB InBev and available at www.ab-inbev.com.

22.1.3 **AB InBev's Human Rights, Labour, Health and Safety, Environmental, Economic Sanctions and Money Laundering Standards** shall mean those contained in AB InBev's Global Responsible Sourcing Policy.

22.2 The Supplier shall comply at all times with AB InBev's Anti-Bribery Policy for Suppliers and AB InBev's Human Rights, Labour, Health and Safety, Environmental, Economic Sanctions and Money Laundering Standards.

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22.3 The Supplier shall comply at all times with any reasonable instructions, guidance or requirement to take steps issued by the Buyer and/or any AB InBev Group company in relation to responsible sourcing and shall comply with AB InBev's Global Responsible Sourcing Policy. Such instructions, guidance or requirement to take steps may include:

22.3.1 disclosure of information specified in Section 4 of AB InBev's Global Responsible Sourcing Policy and Sections 4 and 7 of AB InBev's Anti-Bribery Policy for Suppliers;

22.3.2 participating in the AB InBev Group Supplier assessment processes as part of compliance with clause 22.3.1;

22.3.3 participating in partnerships with the AB InBev Group in support of sustainability initiatives; and

22.3.4 otherwise representing, warranting and covenanting compliance with the policies listed in clause 22.1 above.

22.4 The Supplier shall ensure that any officers, employees, representatives, subsidiaries or agents (**Associated Party or Parties**), sub-contractors or suppliers providing goods or services in connection with the Supplier's provision of Energy to the Buyer under this Agreement (**sub-contractors**) are provided with a copy of AB InBev's Anti-Bribery Policy for Suppliers and AB InBev's Global Responsible Sourcing Policy. When providing goods or services pursuant to or in connection with this Agreement, the Supplier will, and will ensure that its Associated Parties and sub-contractors will, comply with the standards and principles set out in these policies.

22.5 AB InBev is committed to observing applicable anti-corruption laws of the countries in which AB InBev and its Affiliates operate, including the United States Foreign Corrupt Practices Act, UK Bribery Act, the South African Prevention and Combatting of Corrupt Activities Act, 2004 and other applicable laws dealing with bribery, corrupt practices, or money-laundering (**Anti-Corruption Laws**). AB InBev and its Affiliates, including the Buyer, require its suppliers, and their Associated Parties, to comply with AB InBev's ethical standards when dealing with third parties on behalf of AB InBev or its Affiliates, including the Buyer, or in connection with an agreement with AB InBev or its Affiliates, including the Buyer. The Supplier understands and acknowledges the importance to AB InBev, its Affiliates including the Buyer of compliance with these obligations and agrees to abide by the terms and spirit of this provision.

22.6 The Parties accordingly represents and warrants to each other, as of the date hereof and the date that any invoice is submitted, that it has and it will use all reasonable efforts to ensure that:

22.6.1 it, and any of its Associated Parties, shall be bound by, and is and will remain in compliance with all applicable Anti-Corruption Laws, including the laws of the country in which goods are produced and/or delivered and/or services are to be performed pursuant to this Agreement;

22.6.2 neither it nor any of its Associated Parties will, directly or indirectly, offer, pay, promise to pay, or authorize the payment of any money, or offer, give, promise to

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give, or authorize the giving of any financial or other advantage or anything else of value:

22.6.2.1 to any official or employee of any government, or any department, agency, any political party or official thereof, any candidate for political office, any official or employee of any public international organization, or any person acting in an official capacity for or on behalf of any such government, department, agency, party, or organization ('**Public Official**'), in each case for the purpose of (a) influencing or rewarding any act or decision of such Public Official, or (b) inducing such Public Official, to do or omit to do any act in violation of his or her lawful duty, (c) inducing such Public Official to use its or his influence with a foreign government to affect or influence any act or decision of such government, or (d) securing any improper advantage for Supplier or the Buyer; or

22.6.2.2 to any officer, employee, agent, or representative of another company or organization, with the intent to influence the recipient's action with respect to his or her company's business, or to gain a commercial benefit to the detriment of the recipient's company or organization, or to induce the recipient to violate a duty of loyalty to his employer; or

22.6.2.3 which a reasonable person would otherwise consider to be unethical, illegal or improper (collectively, with the acts described in the previous subsections, a **Corrupt Act**).

22.6.3 No payment, promise to pay, authorization, offer or gift of the sort described in this clause 22.6 has been made in connection with the goods or services delivered by Supplier related in any way to this Agreement.

22.6.4 Except as disclosed between the Parties, neither Party nor any of its Associated Parties has in the ten years prior to the date of this Agreement and at any time after:

22.6.4.1 been found by a court or other proceeding in any jurisdiction to have engaged in any Corrupt Act (or similar conduct); or

22.6.4.2 admitted to having engaged in any Corrupt Act (or similar conduct).

22.6.5 Each Party will immediately notify the other Party of the occurrence of any fact or event that could render any representation, warranty, covenant or undertaking in this clause 22.6 incorrect or misleading;

22.6.6 Each Party will, with respect to Books and Records:

22.6.6.1 properly, accurately, and completely record in its Books and Records all transactions made in connection with the supply of goods and services under this Agreement, including, but not limited to: maintaining receipts or other supporting documentation that

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adequately indicate the amount and purpose of and any and all expenses; and

22.6.6.2 specifically bind any Associated Parties to comply with these provisions related to Books and Records.

For the purpose of this clause 22.6, "**Books and Records**" shall be deemed to include, without limitation, corporate records, bank statements, books of account, invoices, vouchers, supporting documentation and other records and documentation, whether in paper or other form.

22.6.7 The Parties will require any Associated Persons to agree to and abide by the representations and warranties in this clause 22.6.

22.6.8 The Parties will cooperate fully with each other and their Affiliates, in connection with the investigation of any allegation, event, fact or occurrence relating to any representation, warranty, or covenant in this clause 22.6. If requested by AB InBev or its Affiliates, including the Buyer, the Supplier shall appoint an executive with sufficient seniority and authority to respond to requests, and promptly furnish such records and information, and provide access to such of Associated Parties, as may be reasonably requested by in connection with any such investigation.

22.7 The Parties further represent and warrant to each other, as of the date hereof and the date that any invoice for goods or services is submitted, that:

22.7.1 to the best of its knowledge, neither it or any of its Associated Parties is a person:

22.7.1.1 (a) included on the List of Specially Designated Nationals and Blocked Persons or the Foreign Sanctions Evaders List maintained by the U.S. Treasury Department's OFAC, or otherwise targeted by sanctions administered by the United States, or (b) targeted by sanctions administered or enforced by the United Nations Security Council, the European Union, Her Majesty's Treasury, any EU member state, or other applicable sanctions authority (a and b collectively, **Sanctions**);

22.7.1.2 that is, or is part of, a government of a country or territory that is, or whose government currently is, the target of countrywide sanctions imposed by a Sanctions authority (as of the date of this agreement, currently, the Crimea Region, Cuba, Iran, North Korea, Sudan, and Syria) (collectively **Sanctioned Territories**);

22.7.1.3 directly or indirectly owned or controlled by, or acting on behalf of, any person who is any of the foregoing;

22.7.1.4 located, organized, or resident in a Sanctioned Territory;

22.7.1.5 otherwise targeted under Sanctions; or

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22.7.1.6 the subject of any Sanctions investigation;

22.7.2 neither Party or any of its Associated Parties will directly or indirectly, use proceeds arising in connection with provision of goods or services under this Agreement, or lend, contribute, or otherwise make available such proceeds to any subsidiary, other affiliate of the Supplier, joint venture partner, or other person:

22.7.2.1 to fund or facilitate any activities of or business or transaction with any person or entity targeted by Sanctions or any activities or business in any Sanctioned Territory, or

22.7.2.2 in any other manner that would result in a violation of any applicable Sanctions.

22.7.3 The Parties will otherwise comply with the requirements of applicable Sanctions and will require any Associated Persons to agree to and abide by the representations and warranties in this clause 22.7.

22.7.4 Each Parties will immediately notify the other Party of the occurrence of any fact or event that could render any representation, warranty, covenant or undertaking in this clause 22.7 incorrect or misleading.

22.7.5 The Supplier will cooperate fully with AB InBev and its Affiliates, including the Buyer, in connection with the investigation of any allegation, event, fact or occurrence relating to any representation, warranty, or covenant in this clause 22.7. If requested by AB InBev or its Affiliates, including the Buyer, Supplier shall appoint an executive with sufficient seniority and authority to respond to requests, and promptly furnish such records and information, and provide access to such Associated Parties, as may be reasonably requested in connection with any such investigation.

22.7.6 The representations made in this Clause 22.7 shall only apply to the Parties and any of their Associated Parties, or for the benefit of any party to this Agreement, to the extent that this Clause 22.7 would not result in any violation of, conflict with or liability under EU Regulation (EC) 2271/96 or a violation or conflict with Section 7 Foreign Trade And Payments Rules (Außenwirtschaftsverordnung) or a similar anti-boycott statute.

22.8 AB InBev and its Affiliates, including the Buyer are committed to observing applicable laws, regulation or decrees, designed to prohibit, restrict or regulate actions that may result in anticompetitive practices (**Anti-Trust and Competition Laws**). The Supplier accordingly represents, and warrants to the Buyer, as of the date hereof and the date that any invoice for goods or services is submitted, that:

22.8.1 The Supplier and its Associated Parties operate in compliance with relevant Anti-Trust and Competition Laws.

22.8.2 The Supplier and its Associated Parties will not engage in any unlawful discussions or correspondence with AB InBev and its Affiliates, including the Buyer that may be construed as anticompetitive.

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22.8.3 Supplier will immediately notify the Buyer of the occurrence of any fact or event that could render any representation, warranty, covenant or undertaking in this clause 22.8 incorrect or misleading.

22.9 Periodically as requested by the Buyer, the Supplier shall cause one of its authorized officers to execute and deliver a Certificate of Compliance with Ethical Practices that confirms the Supplier's continued compliance with the provisions of clauses 22.5 to 22.8.

22.10 Notwithstanding anything to the contrary in this Agreement, the Buyer may, in addition to its other remedies, immediately terminate this Agreement in the event that the Supplier or any Associated Party has breached any representation or warranty set forth in this clause 22. In the event of such termination, Supplier shall defend and indemnify AB InBev and its Affiliates, including the Buyer for any third-party loss, cost, claim, or damage, including legal fees, resulting from the breach of this clause 22 and the Buyer's termination of this Agreement.

22.11 The Supplier shall cooperate and support the AB InBev Group Supplier assessment processes and any on-going compliance and risk assessments regarding the Supplier, including the investigating and closing of any non-compliance issues (**Compliance Process**). The Buyer may share the findings and results from the Compliance Process with any member of the AB InBev Group, which shall include for the purposes of this clause 22, companies in which any member of the AB InBev Group has any shareholding interest. In the event that the Buyer becomes aware of any breach of this clause 22 by the Supplier, the Buyer will demand that the Supplier implement corrective measures, as deemed appropriate by the Buyer.

23 DISPOSAL

Disposal of Agreement

23.1 Except as permitted in this clause 23, or as otherwise allowed in terms of this Agreement, neither Party can cede, assign, novate or otherwise transfer (**Dispose**) all or any part of this Agreement without the prior written consent of the other Party, provided that either Party may Dispose of all or any part of this Agreement to an Affiliate by obtaining the consent of the other Party, which consent shall not be unreasonably withheld.

23.2 No Disposal of this Agreement is permitted unless:

23.2.1 the assignee enters into a deed of covenant with the non-assigning party by which the assignee covenants to be bound by the terms of this Agreement;

23.2.2 the assignor and the assignee first obtain all Government Approvals required by all applicable Government Authorities and Applicable Laws required to facilitate the Disposal and to otherwise comply with its obligations under this Agreement post Disposal;

and

23.2.3 with respect to a Disposal by the Supplier:

(a) the assignee demonstrates to the Buyer's reasonable satisfaction that the assignee has:

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(i) for the preceding three (3) years:

(1) owned, directly or together with its Affiliates; or

(2) operated (or had access to the expertise to operate through its Affiliates or committed operation and maintenance agreements with third parties),

generating facilities similar to the Facility in commercial operation; and

(ii) obtained for its benefit a written undertaking from the operators of the Facility to provide such manpower, personnel and resources (including necessary onsite supervision, staffing and support services) for the operation and maintenance of the Facility as are consistent with Good Utility Practice.

23.3 The Buyer's consent is not required for the Supplier to assign this Agreement for collateral purposes to any Financing Parties.

Disposal of Facility

23.4 The Supplier must not Dispose any of its rights, title to or interest in the Facility without obtaining the prior written consent of the Buyer, which consent must not be unreasonably withheld or delayed if:

23.4.1 the assignee is, in the reasonable opinion of the Buyer:

23.4.1.1 of good standing;

23.4.1.2 legally, financially and technically capable of performing the Supplier's obligations under this Agreement;

23.4.1.3 not a competitor of the Buyer; and

23.4.1.4 satisfies the requirements of clause 23.2.3(a).

23.4.2 the assignee first obtains all Government Approvals required by all applicable Government Authorities and Applicable Laws required to facilitate the Disposal and to otherwise own, operate and maintain the Facility; and

23.4.3 the assignee enters into a deed of covenant with the Buyer by which the assignee covenants to be bound by the terms of this Agreement.

23.5 If the Supplier Disposes any of its rights, title or interest in the Facility in accordance with clause 23.4, the Buyer agrees to release the Supplier from its obligations under this Agreement arising from and after the date of that Disposal to the extent those obligations are assumed by the assignee on terms reasonably acceptable to the Buyer.

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23.6 The Supplier indemnifies the Buyer on demand from and against any and all tax liability (including any increase in existing tax liability) howsoever arising from or in connection with any Disposal by or on behalf of the Supplier under this clause 23.

23.7 The Buyer's consent is not required for the Supplier to Dispose of the Facility for collateral purposes to any Financing Parties.

Control of the Supplier

23.8 Any Change of Control of the Supplier (whether voluntary or by operation of law) requires the prior written consent of Buyer, which consent must not be unreasonably withheld or delayed, provided:

23.8.1 the assignee is:

23.8.1.1 of good standing;

23.8.1.2 legally, financially and technically capable of performing the Supplier's obligations under this Agreement;

23.8.1.3 not a competitor of the Buyer; and

23.8.1.4 satisfies the requirements of clause 23.4.1.2.

The Buyer's consent is not required for the assignment of Supplier's rights and obligations under this agreement to any Finance Parties for collateral purposes, or otherwise, provided such Financing Parties satisfy the requirements in clauses 23.8.1.1, 23.8.1.2 and 23.8.1.3.

Liens

23.9 The Supplier must:

23.9.1 not permit any Lien (other than a Permitted Lien) to be created over the whole or any part of the Facility;

23.9.2 promptly notify the Buyer of the creation or imposition of any such Lien not permitted by this Agreement;

23.9.3 use its best endeavours to remove any such Lien without delay; and

23.9.4 indemnify the Buyer on demand from and against any and all loss, liability, cost and/or expense arising from or in connection with such Lien.

23.10 The Buyer must:

23.10.1 furnish the Supplier with written confirmation in form and substance reasonably acceptable to the Supplier from any person holding a mortgage, lien or other encumbrance over the Site or the Facility, as applicable, that such person will recognize Supplier's rights under this Agreement;

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23.10.2 ensure that there are no easements, servitudes or other land use restrictions, liens or encumbrances that would materially impair or prevent the installation, operation, maintenance or removal of the Facility; and

23.10.3 not permit any Mortgage, Lien or any other encumbrance to be created over the whole or any part of the Facility or Site that may have an effect on the Supplier under this Agreement, without the prior written consent of the Supplier, which consent shall not be unreasonably withheld or delayed.

24 HEALTH AND SAFETY

24.1 The Supplier must ensure that all of its employees, contractors and subcontractors comply with the Work Health and Safety Legislation and the health and safety, security and other policies of the Buyer in place as notified to the Supplier from time to time.

24.2 In this clause 24, the terms '**construction work**', '**client**' '**principal contractor**' and '**construction site**' have the same meanings given to those terms under the *Occupational Health and Safety Act, 1993*.

24.3 Without limiting the Supplier's obligations under any other provision of this Agreement:

24.3.1 all construction work to be carried out by the Supplier for the purposes of constructing the Facility will be carried out by and for the benefit of the Supplier, as principal and owner, and not for the Buyer and accordingly the Supplier is the "Client" for the purposes of the relevant Work Health and Safety Legislation, and in particular the Construction Regulations, 2014; and

24.3.2 The Supplier confirms that it has received sufficient information about the Site and the Existing Facility in order to:

24.3.2.1 comply with Work Health and Safety Legislation and in particular the Construction Regulations;

24.3.2.2 adhere to the Buyer's health and safety, security and other policies;

24.3.2.3 be properly appointed in accordance with Section 37(2) of the *Occupational Health and Safety Act, 1993* (to the extent necessary) as contemplated in clause 24.4.1 below.

24.3.3 The Supplier shall ensure that the contractor appointed as the "principal contractor" for any construction work complies with all the obligations of the "principal contractor" as defined in the Work Health and Safety Legislation.

24.3.4 Where there is more than one contractor on the Site, the Supplier shall ensure that the other contractors comply with their obligations as defined in the Work Health and Safety Legislation.

24.4 Without limitation, the Supplier:

24.4.1 notwithstanding any actions which the Buyer may take, accepts sole liability for due compliance with the relevant duties, obligations, prohibitions, arrangements

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and procedures imposed by the Work Health and Safety Legislation by its, its employees and its contractors or subcontractors. By entering into this Agreement it is deemed that (to the extent necessary) the Parties have agreed in writing to the above provisions in terms of Section 37 (2) of the *Occupational Health and Safety Act, 1993*;

24.4.2 acknowledges and confirms that the Escalating Price includes a sufficient amount for proper compliance with the Work Health and Safety Legislation generally for the proper maintenance of health and safety at the Site and the Facility;

24.4.3 undertakes, in and about the execution of any construction or related activity on the Site to comply with Work Health and Safety Legislation and ensure that all contractors, subcontractor, employees under the Supplier's direction and control, likewise observe and comply with the foregoing; and

24.4.4 indemnifies the Buyer against any loss, damage or claim(s) suffered by the Buyer due to a failure to comply with any provision of this clause 24 by the Supplier, the Supplier's employees, subcontractors and contractors.

24.5 The Supplier and its designer accept full responsibility and liability to comply with the Work Health and Safety Legislation for the design of the Facility.

24.6 The Buyer retains a right to: (i) inspect, review and obtain copies of all documents, audits and reports produced in terms of Work Health and Safety Legislation; (ii) attend and participate in all meetings and inquiries related in any way to health and safety at the Site including but not limited to those that are conducted in accordance with Section 31 and/or 32 of the *Occupational Health and Safety Act, 1993* its regulations and the *Construction Regulations, 2014* following any incident involving the Supplier and/or any contractor and/or subcontractor's and/or their employees.

24.7 The Supplier shall notify the Buyer in writing of all inquiries, audits, reports, investigations, complaints or criminal charges which arise pursuant to the activities of the Buyer on the Site in terms of this Agreement.

24.8 During the currency of this Agreement and for a period of 5 (five) years after, the Buyer has the right to access and inspect any part of the Facility and all documents, reports, designs, specifications whatsoever that are prepared related to the Facility.

24.9 The Supplier, to the extent required and having regard to the Existing Facility on the Site and any ongoing activities on the Site, must liaise with the Buyer in order to ensure that all risks posed by the Site, the Facility and construction or operational activities related to the Facility are taken into account for purposes of complying with the Work Health and Safety Legislation.

24.10 The Supplier acknowledges that, except to the extent expressly required by this Agreement, the Buyer will continue the operation and use of the Existing Facility during the course of carrying out of all of the activities under this Agreement.

24.11 Without limitation to any other obligation of the Supplier, the Supplier will use its best efforts to:

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24.11.1 not disrupt or interfere in any way with the operations being undertaken on, from or within the Existing Facility;

24.11.2 not interfere with the free movement of traffic (vehicular or pedestrian) into and out of, adjacent to, around, on or about the Existing Facility or block or impair access to any premises, carparks, loading bays, roadways, pedestrian ways or other facilities associated with the Existing Facility;

24.11.3 not use or allow any subcontractor to use any part of the Existing Facility other than as expressly provided for or directed by the Buyer from time to time;

24.11.4 program and co-ordinate all its activities so as to minimise the effect that carrying out its activities has on the Existing Facility; and

24.11.5 if directed by the Buyer, at the Supplier's own cost, immediately repair and make good any damage to the Existing Facility arising from or in connection with the installation or operation of the Facility or otherwise reimburse the Buyer for the costs of repairing and making good such damage.

25 MISCELLANEOUS

25.1 Any notice or other communication to be given under this Agreement:

25.1.1 must be in writing; and

25.1.2 is served if delivered personally, by prepaid registered post or by email to the addressee at the address or (as the case may be) the email address in SCHEDULE 1: (or such other address subsequently notified under this clause 25.1);

provided that, where no postal address, or email address is given in respect of particular notices, no such notices may validly be served by such method of communication.

25.2 Subject to clause 25.3, a notice is received:

25.2.1 in the case of delivery by hand, on delivery;

25.2.2 in the case of prepaid registered post, on the second day following the date of posting; and

25.2.3 in the case of email, on delivery to the recipient's server and provided no error message is received by the sender.

25.3 Any notice received on a day that is not a Business Day, or after 17.00 hours local time at the recipient's location on a Business Day, is deemed received at 09.00 hours local time at the recipient's location on the following Business Day.

25.4 **Waiver** The failure of or delay on the part of either Party to enforce or insist upon compliance with or strict performance of any of the terms or conditions of this Agreement, or to take advantage of any of its rights under this Agreement, will not constitute a waiver or

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relinquishment of any such terms, conditions, or rights, but the same shall be and remain at all times in full force and effect.

Duty to Mitigate

25.5 Each Party agrees it has a duty to mitigate loss or damage and that it will use Commercially Reasonable Efforts to minimize any loss or damage it may incur as a result of the other Party's performance or non-performance under this Agreement.

Relationship of the Parties

25.6 This Agreement does not create an association, joint venture or partnership between the Parties or impose any partnership obligation or liability upon either Party.

25.7 Neither Party has any right, power or authority to enter into any agreement or undertaking for, or act on behalf of, or to act as an agent or representative of, the other Party.

25.8 Each Party is solely liable for the payment of all wages, taxes and other costs related to the employment of Persons to perform its obligations under this Agreement.

Survival of Obligations

25.9 Expiration or earlier termination of this Agreement does not relieve the Parties of obligations that expressly survive, or that, by their nature, are intended to survive, expiration or earlier termination, or a CP not being met.

Severability

25.10 In the event any provision, or the application of any provision, of this Agreement, is held invalid, illegal or unenforceable by any court or administrative body, all other provisions will remain in force and effect.

Entire Agreement

25.11 This Agreement constitutes the entire agreement between Buyer and the Supplier with respect to the subject matter and supersedes all previous communications, representations or agreements, either verbal or written, between Buyer and the Supplier with respect to the subject matter of this Agreement.

Amendments

25.12 This Agreement may be amended provided that such amendment is in writing and signed by both Parties.

Counterparts

25.13 This Agreement may be executed in any number of counterparts, and each executed counterpart has the same force and effect as an original instrument.

Indirect Loss

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25.14 Neither Party will be liable for any form of Consequential Loss in connection with this Agreement.

25.15 Clause 25.14 does not limit a Party's obligation to pay a Termination for Default Amount, Early Termination Payment or Delay Damages.

25.16 The Parties liability to each other in respect of any claim that arises out of this Agreement, whether under delict, contract or common law, shall be as detailed in this Agreement, and no Party shall have any additional liability to the other Party in respect of such claim.

Confidentiality

25.17 Each Party must protect the Confidential Information it receives from unauthorized disclosure, publication or dissemination. Confidential Information must not be disclosed to any person other than to a Party's Affiliates and its and their respective directors, officers, employees, agents, representatives or advisors (including financial advisors, legal advisers and accountants) **(Representatives),** except to the extent disclosure:

25.17.1 is required by Applicable Law;

25.17.2 is reasonably deemed by the disclosing Party to be required to be disclosed in connection with a Dispute between the Parties, or the defense of any Dispute or litigation;

25.17.3 is otherwise permitted by consent of the other Party;

25.17.4 is required to be made or desirable in connection with regulatory proceedings or rating methodology for a credit rating; or

25.17.5 to any actual or potential financier, investor, acquirer of any direct or indirect ownership interest in a Party or to any representative or advisor providing professional advice to a Party or to any of the foregoing. In the event disclosure is made under this provision, the Parties must use reasonable efforts to minimize the scope of any disclosure and advise recipients of the confidentiality restrictions in this Agreement.

25.18 The Parties acknowledge and agree that neither Party can issue any press release or other public statement that addresses specific commercial terms of this Agreement or the existence of a power purchase or similar agreement between the Parties without the prior written consent of the other Party.

Anti-Bribery

25.19 In performing its obligations under, carrying out the transactions contemplated by and obtaining any Government Approvals required in connection with this Agreement, none of the Supplier and its respective officers, directors, employees and agents will offer, pay, promise or authorize payment of anything of value to any government official, political party or political candidate, in violation of any applicable anti-bribery or anti-corruption laws, or take any other action that would violate any applicable anti-bribery or anti-corruption laws binding on such person or in effect in any jurisdiction in which such action is taken.

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25.20 The Supplier expressly confirms having read and agrees to comply with (and ensure its Personnel comply with) the anti-bribery and anti-corruption expectations stated in the Buyer Global Responsible Sourcing Policy

Remedies Cumulative

25.21 Except to the extent expressly provided otherwise in this Agreement, each right or remedy of the Parties in this Agreement is cumulative and in addition to every other right or remedy in this Agreement.

Governing Law

25.22 The interpretation and performance of this Agreement and each of its provisions is governed and construed in accordance with the laws referenced in SCHEDULE 1: . Each of the Parties acknowledges and agree to the non-exclusive jurisdiction of the courts referenced in SCHEDULE 1: , over any Disputes and irrevocably waives, to the fullest extent it may effectively do so, any defense of *forum non conveniens*.

Stipulation for the benefit of a third party

25.23 The provisions of this Agreement requiring the consent of or otherwise expressed to in favour of the Financiers constitute a *stipulatio alteri* in favour of the Finance Parties, which *stipulatio alteri* is irrevocable and capable of acceptance by the Finance Parties at any time and from time to time without notice to any Party.

26 METERING

Metering Equipment

26.1 The Supplier shall, at its own expense:

26.1.1 be responsible for the installation, operation and maintenance of all Metering Equipment within the Facility and at the Point of Delivery;

26.1.2 ensure that at all times during the Supply Term there is Metering Equipment installed at the Facility; and

26.1.3 comply with all Applicable Laws, Government Approvals and requirements of Government Authorities regarding the metering, registration and licensing requirements for the export of electricity at the Point of Delivery and the interconnection of the Facility and the Existing Facility to the System.

26.2 The Facility Specifications sets out the number, type and location of such Metering Equipment, which must:

26.2.1 be dedicated exclusively to the Facility; and

26.2.2 be capable of measuring Energy, Sent Out Energy and Deemed Energy generated by the Facility in accordance with Good Utility Practice, Applicable Laws, Government Approvals and the requirements of Government Authorities, Network Operator and the Technical Design Review.

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26.3 Upon the Buyer's written request, the Supplier must give the Buyer:

26.3.1 a copy of all technical specifications and accuracy testing results for the Metering Equipment;

26.3.2 "real-time" direct access to all metering data from the Metering Equipment in an electronic form; and

26.3.3 all metering data and Energy production calculations.

26.4 The Supplier must operate and maintain the Metering Equipment in accordance with Good Utility Practice, Applicable Laws, Government Approvals and the requirements of Government Authorities and the Network Operator.

26.5 The Supplier must, at its own expense, be responsible for the inspection and testing of all Metering Equipment. Such inspection and testing must occur upon installation of the Metering Equipment and at least once every one (1) Contract Year (or more frequently if required by the Network Operator, Applicable Law or Government Approvals). Buyer may dispute any Deemed Energy payments in the event that the Metering Equipment is not functional.

26.6 The Buyer may instruct the Supplier to perform additional inspections or tests of any Metering Equipment.

26.7 The Supplier must provide reasonable advance notice of and permit a qualified representative of the Buyer to witness or verify the inspection or testing of any Metering Equipment.

26.8 The expense of any requested additional inspection or testing in accordance with clause 26.6 will be borne by Buyer, unless, a Metering Equipment is found to register inaccurately by more than the variance permitted by clause 26.12, in which event such expense will be borne by the Supplier.

26.9 The Supplier must provide copies of all inspection or testing reports of the Metering Equipment to the Buyer, regardless of how or by whom such inspection or testing reports were initiated.

26.10 The Buyer has the right at its sole cost to audit all Metering Equipment data upon reasonable notice to the Supplier. The Supplier must provide the Buyer with all Metering Equipment readings and additional documentation reasonably requested by the Buyer for the purposes of such audit.

26.11 The Buyer may, at its own cost and maintenance install check metering at the Facility.

Adjustment for Inaccurate Metering Equipment

26.12 If any Metering Equipment fails to register or if the measurement made by any Metering Equipment is found upon testing to be inaccurate by more than half a per cent (0.5%) or, if more stringent, the limits allowed by Applicable Law, or the Network Operator , then the Supplier must promptly notify Buyer of such failure and such Metering Equipment must be adjusted, repaired, replaced or recalibrated in accordance to SANAS standard as near as

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practicable to a condition of zero error by the Supplier at the Supplier's expense and its measurements must be corrected in the manner set out in this clause 26.12.

26.13 The Supplier must make a corresponding adjustment to the Metering Equipment records of the amount of Sent Out Energy and Deemed Energy based upon the data recorded by the Metering Equipment, provided, however, that each Party, in its reasonable judgment, is satisfied that the Metering Equipment data is accurate.

26.14 If the Parties do not agree that the Metering Equipment data is accurate, then the Parties must estimate the amount of the necessary adjustment on the basis of deliveries of Sent Out Energy and measurement of Deemed Energy during periods of similar operating conditions when the Metering Equipment was registering accurately. The necessary adjustment must be made for the period during which inaccurate measurements were made, as mutually agreed by the Parties or determined in accordance with clause 17.

26.15 In the event the Parties cannot agree upon the actual period during which the inaccurate measurements were made, the period during which the measurements are to be adjusted will be the shorter of:

26.15.1 the last one-half of the period from the last previous test of the Metering Equipment to the day on which the Metering Equipment was tested and made accurate; or

26.15.2 the 180 (one hundred and eighty) days immediately preceding the test that found the Metering Equipment to be defective or inaccurate.

26.16 To the extent that the adjustment period covers a period of deliveries for which payment already has been made hereunder, the Supplier must use the corrected measurements as determined in accordance with clause 26.12 to recompute the amount due for the period of the inaccuracy and must reflect the previous payments for this period in such recomputed amount.

26.17 Payment of such difference by the owing Party must be made no later than 30 (thirty) days after the owing Party receives notice of the amount due (unless the owing Party elects to offset against payments falling due prior to such date).

26.18 Any Dispute regarding the matters contemplated by this clause 26 must be referred to the Independent Expert under clause 17.

27 GREEN BENEFITS

27.1 The provisions of this clause 27 apply to all Green Benefits that accrue in respect of Sent Out Energy, Deemed Energy and Shortfall Energy during the Supply Term.

27.2 The Supplier shall provide commercially reasonable support to the Buyer, which may include completion and lodging of various forms, so that the Buyer may claim any Green Benefits.

27.3 Any Green Benefits received as a result of the Facility (whether existing now or in the future) shall be for the benefit of the Buyer. The Buyer shall have the right to use and enjoy all such benefits, whether now or in the future.

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27.4 The Buyer shall be responsible all the costs and expenses incurred by the Parties in complying with its obligations under this Agreement in respect of the issue or accrual of accreditation of any New Green Benefit.

27.5 Any Dispute regarding the matters contemplated by this clause 27 must be referred to the Independent Expert under clause 17.

28 PRICE AND PAYMENT

Escalating Price

On and from the Commercial Operation Date, the Buyer must pay the Escalating Price (escalating at 2.5% annually) for all Sent Out Energy and Billable Deemed Energy

Adjustment to Escalating Price

28.1 The Parties agree that the Escalating Price will not be adjusted except as expressly provided for in this clause 28, or the relevant clauses in clause 11.

28.2 If the Effective Energy Cost under this Agreement, is 1% (one percent) or more less than the Escalating Price, the Buyer may unilaterally request the Parties to enter into good faith negotiations and agree on a new Escalating Price and adjustment to the commercial terms which preserve the economic value of this agreement.

Billing Statements

28.3 In respect of each Month in the Supply Term following the Commercial Operation Date, the Supplier must prepare and issue to the Buyer within the later of 10 (ten) Business Days after each Month end a Monthly statement (**Billing Statement**) setting out:

28.3.1 the Escalating Price for that Month;

28.3.2 the Sent Out Energy recorded by the Metering Equipment as delivered from the Facility to the Point of Delivery for the relevant Month;

28.3.3 the Deemed Energy and Billable Deemed Energy determined pursuant to this Agreement for the relevant Month;

28.3.4 any amount owed by the Supplier to the Buyer as the Cost of Replacement Energy for the Shortfall Energy;

28.3.5 other amounts accruing to either Party under any other provision of this Agreement;

28.3.6 the VAT payable by the Buyer in calculated in accordance with the VAT Law (not taking into account any set off, demand, or deduction);

28.3.7 all information required to be included in a tax invoice under the VAT Law; and

28.3.8 the Net Payable Amount.

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28.4 For the first Billing Statement of each operating year, starting from the second Contract Year, Supplier will set out and deduct from the billing statement any amount owed by the Supplier to the Buyer as the Shortfall Payment for the prior operating year.

Payment

28.5 The Buyer must pay to the Supplier any Net Payable Amount, free of any deductions, set-off or other withholding whatsoever, due and payable by the Buyer set out in the tax invoice plus any applicable VAT:

28.5.1 by depositing clear funds to a nominated bank account of the Supplier; and

28.5.2 within 120 Days after the end of the relevant Month.

28.6 Save as provided in clause 28.7, All payments shall be made in United States Dollars.

28.7 At any point during the term of the agreement, the Buyer may unilaterally request to make payments in Ghanaian Cedi. At which point, the Parties will enter into good faith negotiations and agree on the Ghanaian Cedi price and adjustment to the commercials terms which preserve the economic value of this agreement.

Adjustments to Tax Invoice

28.8 Any adjustments required to correct inaccuracies or updated information in a tax invoice must be included by the Buyer in the next prepared tax invoice.

28.9 Any claim by the Supplier for an increase in the amounts owed by the Buyer to the Supplier under this Agreement due to an adjustment will be waived for any payments made in respect of a period which occurred more than 6 Months prior to the date of the Supplier's claim.

Billing Disputes and Adjustments

28.10 Neither Party is required to pay any amount to the subject of a Dispute between the Parties until such Dispute has been resolved and the owing Party will not be deemed to be in default under the Agreement by reason of such non-payment.

28.11 Neither Party can suspend the performance of their respective obligations, including payment of undisputed amounts owed under any tax invoice while such a payment dispute exists.

28.12 Interest accrues daily and is payable at an annual rate equal to the Interest Rate in respect of payments made under this Agreement from (and including) the due date for the original payment until the date such amounts are paid.

28.13 Any Dispute regarding the matters contemplated by this clause 28 must be referred to the Independent Expert under clause 17.

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Signed for the **ACCRA BREWERIES LIMITED**

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Signature of director

Signature of director/secretary

Gareth De Gee

Name of director (print)

Name of director/secretary (print)

Signed for **CROSSBOUNDARY ENERGY GHANA LIMITED** by:

Matthew James Tilleard

Signature of director

Signature of director or secretary

Matthew James Tilleard

Name of director (print)

Name of director or secretary (print)

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SCHEDULE 1: CONTRACT DETAILS

Part 1: Contract Details

Item	Detail
Escalating Price (clause 1.1)	0.113 USD/kWh at a 2.5 % annual escalation at the end of each Contract Year
Extension Period Escalating Price (clause 1.1)	
Governing Law and Jurisdiction (clause 25.22)	Governing Law: The laws of England and Wales. Jurisdiction: The courts of England and Wales.
Target Commercial Operation Date (clause 1.1)	270 days from the Effective Date
Notices - Buyer (clause 25.1)	Name: Gugulethu Nogaya Position: Procurement Manager, Energy & Fluids Postal Address: 65 Park Lane, Sandton, Johannesburg, South Africa 2196 Email Address: Gugulethu.Nogaya@za.ab-inbev.com Phone Number: +27 (0) 82 943 5575
Notices – Supplier (clause 25.1)	Name: Matthew Tilleard Position: Managing Director Postal Address: ABC Place, Waiyaki Way, Nairobi, Kenya 00100 Email Address: energynotices@crossboundary.com Phone Number: +254 (0) 717 996 158
Interest Rate	10%

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Part 2: Facility Specifications

	Specification	Description
1.	**Site**	Accra Breweries Limited, El Nasser Building, 22 Graphic Road, Accra, Ghana
2.	**System**	11 kV/ 400 V or as described during Technical Design Review.
3.	**Equipment**	All equipment used in the construction of the Facility must be new and all modules must be from a Tier 1 supplier as per the Bloomberg New Energy Finance Q4 Module Maker List or a more recent version thereof.
4.	**Connection**	The connection to the Existing Facility must be at low voltage end.
5.	**Point of Delivery**	To be confirmed during Technical Design Review.
6.	**Location of Revenue Meter**	To be confirmed during Technical Design Review.
7.	**Metering Equipment**	To be confirmed during Technical Design Review.
8.	**Generation Type**	Solar PV.
9.	**Contracted Capacity**	2,258 kWp. Contracted Capacity is based on an expected installed capacity of 2,258 kWp. Should the Contracted Capacity of the Facility differ from this at Commercial Operation Date, the Contracted Capacity will be adjusted pro-rata based on the final installed capacity.
10.	**Target Annual Generation**	The expected Sent Out Energy for the Contract Year as stated in SCHEDULE 3: .
11.	**Minimum Annual Generation**	The minimum Sent Out Energy for the Contract Year (adjusted for the irradiation, temperature and installed capacity as defined below) as stated in SCHEDULE 3: . below
12.	**Design Life**	25 years.
13.	**Preliminary Yield Estimate**	To be confirmed during Technical Design Review

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SCHEDULE 2: REQUIRED INSURANCES

Part 1: Construction Insurance Requirements

Cover	Detail
Construction Works and Delay in Commercial Operation	**Covering:** All risks of physical loss or damage to the Facility construction works, including cover for delays in the Commercial Operation Date caused by insured events under the Construction Works section of the policy. **Required cover:** Not less than 100% of the contract value of the Facility construction works on a full replacement and reinstatement basis, with delay coverage to be based on the projected value of production loss for the period of the delay. **Timing:** From Effective Date until Commercial Operation Date.
Public Liability	**Covering:** Liability to third parties for personal injury and/or property damage. **Required cover:** a minimum of USD 1,300,000 (one million three hundred thousand) for any single event. **Timing:** From Effective Date until Commercial Operation Date.
Workers Compensation	**Covering:** Legal liability to employees in accordance with workers compensation legislation applicable to the Country and the location of the Site. **Required cover:** As required by Applicable Law. **Timing:** From Effective Date until Commercial Operation Date.
Professional Indemnity Insurance	**Covering:** Civil liability arising from the performance of professional services by or on behalf of the Supplier. **Required cover:** a minimum of USD 650,000 (six hundred fifty thousand) for any single event and in the aggregate. The policy should also be extended to include one automatic reinstatement provision. **Timing:** From Effective Date until Commercial Operation Date.

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Part 2: Operational Insurance Requirements

Cover	Detail
Assets All Risk	**Covering:** All risks of physical loss or damage to the Facility. **Required cover:** 100% of the value of the Facility on a full replacement and reinstatement basis, which shall include in its scope, cover against natural disasters, loss or damage caused by accidental damage, fire, explosion, burglary, theft, flood, lightning, hail, wind, and damage due to animals, vehicles or falling trees. **Timing:** From Commercial Operation Date until expiry of the Supply Term.
Public Liability	**Covering:** Liability to third parties for personal injury and/or property damage. **Required cover:** a minimum of USD 300,000 (three hundred thousand)for any single event (escalated each Contract Year for changes in US CPI after the Execution Date). **Timing:** From Commercial Operation Date until expiry of the Agreement Term.
Workers Compensation	**Covering:** Legal liability to employees in accordance with workers compensation legislation applicable in Ghana. **Required cover:** As required by law. **Timing:** From Commercial Operation Date until expiry of the Agreement Term.

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SCHEDULE 3: GENERATION FORECAST

The Supplier shall be liable for performance liquidated damages ("**Cost of Replacement Energy**") to the extent the Sent Out Energy of the Facility in any Contract Year shall be less than the relevant Minimum Annual Generation for such Contract Year, unless failure to meet the Minimum Annual Generation is due to (a) acts or omissions of Buyer or breach by Buyer of any of its obligations hereunder, (b) Force Majeure Events or (c) failure, damage or downtime attributable to Buyer or third parties not acting on behalf of the Supplier.

Preliminary Yield Estimate and Loss Breakdown for the Facility are shown below:

Loss Breakdown		
Global Horizontal Irradiation	**1,919.0**	**kWh/m²**
Global Incident on Collector Plane	-0.45%	
Global In-plane Irradiation	**1,910.4**	**kWh/m²**
Global Incident below threshold	-0.03%	
Near Shadings	-0.95%	
IAM Factor	-1.9%	
Soiling Loss	-5.0%	
Effective Irradiance on Collectors	**1,763.1**	**kWh/kWp**
Irradiance Level	-0.7%	
Temperature Loss	-9.9%	
Module Quality Loss	0.6%	
Light Induced Degredation	-1.1%	
Module Array mismatch Loss	-0.8%	
Ohmic wiring loss	-2.0%	
Array Energy at MPP (virtual)	**1,526.7**	**kWh/kWp**
Inverter Efficiency Loss	-1.4%	
Inverter loss over nominal inverter power	0.0%	
Inverter loss due to power threshold	0.0%	
Inverter loss over niminal inv.voltage	0.0%	
Inverter loss due to voltage threshold	0.0%	
Energy at Inverter Output	**1,505.5**	**kWh/kWp**
Auxiliaries (fans, other)	-0.30%	
AC Ohmic Losses	-1.51%	

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Loss Breakdown		
Perfect System Output	**1,478.3**	**kWh/kWp**
UnScheduled Downtime Scheduled Downtime	-1.00% -1.92%	
Specific Energy Supplied to Customer	**1,435.5**	**kWh/kWp**
Target Annual Generation (Year 1)	**3,241.2**	**MWH/yr**
GHI Performance Ratio (Excl. Unavailability)	**77.04%**	
GII Performance Ratio (Excl. Unavailability)	**77.38%**	

Target Annual Generation and Minimum Annual Generation figures for each operating year are shown below:

Contract Year	Target Annual Generation (kWh)*	Minimum Annual Generation (kWh)*
1	3,241,166	2,917,049
2	3,218,478	2,896,630
3	3,195,949	2,876,354
4	3,173,577	2,856,219
5	3,151,362	2,836,226
6	3,129,302	2,816,372
7	3,107,397	2,796,657
8	3,085,645	2,777,081
9	3,064,046	2,757,641
10	3,042,598	2,738,338
11	3,021,299	2,719,169
12	3,000,150	2,700,135
13	2,979,149	2,681,234
14	2,958,295	2,662,466
15	2,937,587	2,643,828

<u>*Note:</u>

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1) Minimum Annual Generation is calculated as 90% of the Target Annual Generation.

2) In any given year of operation, the Supplier has the right to amend the Minimum Annual Generation for a specific Contract Year if the measured global irradiation and temperature experienced onsite differ from the values considered in the Preliminary Yield Estimate, according to the formulae below:

$$MAG_i = TAG_i \times \frac{Irr_i}{Irr_{modelled}} \times TCF \times 0.90$$

where:

MAG_i	=	Minimum Annual Generation for Contract Year i.
TAG_i	=	Target Annual Generation for Contract Year i as shown in the table above in this SCHEDULE 3: .
Irr_i	=	Global horizontal irradiation (GHI), in kWh/m^2, measured for Contract Year is and corrected for data unavailability.
$Irr_{modelled}$	=	Average modelled global horizontal irradiation (GHI), in kWh/m^2 as shown in the Preliminary Yield Estimate shown in SCHEDULE 1: Part 2: .
TCF	=	Temperature Correction Factor, calculated as per the formula below.

$$TCF = 1 - (Tm - 25°C) * \gamma$$

where:

TCF	=	Temperature Correction Factor
Tm	=	The onsite measured module temperature averaged over each valid 15-minute period for the year and weighted according to the onsite measured global horizontal irradiance, all as corrected for data unavailability;
γ	=	The temperature coefficient of power for the supplied solar modules as specified by the manufacturer in the module data sheet (%/°C) (expressed as the absolute value).

3) Minimum Annual Generation figures are based on an expected installed capacity of 2,258 kWp. Should the Contracted Capacity of the Facility differ from this at Commercial Operation Date, the Minimum Annual Generation will be adjusted pro-rata based on the final installed capacity.

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SCHEDULE 4: EARLY TERMINATION PAYMENT

The below Early Termination Payment will be applied to the final Facility size in kWp per the Contracted Capacity.

Occurring following:	USD/kWp	USD (based on 2.258MW system)*
Effective Date of Agreement		
Contract Year 1	1.18	2,664,440
Contract Year 2	1.16	2,619,280
Contract Year 3	1.15	2,596,700
Contract Year 4	1.12	2,528,960
Contract Year 5	1.07	2,416,060
Contract Year 6	1.00	2,258,000
Contract Year 7	0.94	2,122,520
Contract Year 8	0.89	2,009,620
Contract Year 9	0.83	1,874,140
Contract Year 10	0.76	1,716,080
Contract Year 11	0.69	1,558,020
Contract Year 12	0.60	1,354,800
Contract Year 13	0.50	1,129,000
Contract Year 14	0.39	880,620
Contract Year 15	0.26	587,080
Contract Year 16-25	0.10	225,800

Exact system size may be adjusted during the final design stage

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SCHEDULE 5: BUYER ENABLING WORKS

The Enabling Works shall be governed by the following terms and conditions:

1. The Buyer shall be responsible for the procurement, delivery, off-loading and unloading, installation and commissioning of the Enabling Works described in this Schedule and they shall be completed to a standard as to allow the Supplier to commence installation of the Facilities.
2. The Buyer shall be responsible for the design, maintenance and upkeep of the Enabling Works of a structural nature (including insurance thereof).
3. In the event that the Buyer, after using Commercially Reasonable Efforts, is unable to complete the Enabling Works, the Buyer will consult the Supplier in good faith to agree to any amendments to the Enabling Works that allow the Supplier to complete installation of the Facilities.
4. In the event that the Enabling Works critical to the proper construction or operation of the Facilities (or the fulfilment of Supplier's obligations under the Agreement) have not been completed or are in a state that requires immediate repair, the Supplier shall request that Buyer make such repairs or corrections so as the Enabling Works are completed to the extent required for the Facilities to be constructed or function as intended. Where the Buyer fails to make such repairs or amendments to the Enabling Works, after being provided the request from Supplier, Supplier may make such repairs or perform such improvements at its own expense, save that all such costs and expenses reasonably incurred in correcting, fixing or maintaining the Enabling Works shall be recoverable from the Buyer.

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Table 1. Description of individual site Enabling Works are listed below:

Physical Construction Enabling Works

#	Description
1.	**Site Access** - Ensure access for trucks with 40" containers to the laydown area and to site.
2.	**Offloading onsite** – where possible and practical, Buyer to assist with providing machinery and assistance for the unloading of containers onsite. The purpose of this is avoid the requirement of bringing external machinery onsite for the purpose of offloading.
3.	**Laydown Area and Storage Room** – allocation of a flat area of 900sqm (laydown area) as well as lockable storage room and a 5m x 5m zone near the roof access area
4.	**Perimeter fencing and security provisions -** 24/7 security services according to industrial standard to assist in the prevention of theft during construction.
5.	**Utility Services –** provision of onsite utility services at a localized point at ground level as follows: • **Electricity:** supply of power (single phase) where possible for construction purposes to power handheld power tools, mobile welders, laptops and any other appliances for construction purposes; • **Water:** provision of water for cleaning PV modules at locations near each building with solar PV modules on. The water requirement for module cleaning during operation is ~30 m^3/yr.
6.	**Staff Welfare Facilities:** Where possible and practical, Buyer to grant Supplier access to sanitary facilities and canteen services (fit for purpose) during Scheduled work hours.
7.	**Temporary Office Space:** Buyer to provide a secure temporary office space to the Construction Contractor's Project manager for the period of construction.
8.	**Interconnection Downtime:** The Buyer to make provision for downtime, Supplier to notify Buyer 4 weeks before connection is required. The Buyer will arrange for their own staff to shut down the board and hand it over to the Supplier who will then make the modifications/connection. The Buyer will then reenergize the board once it is handed back by the Supplier. Estimated downtime is 2-4 hours per day for 4 days.
9.	**New Works:** Buyer is to ensure that no new works are carried out that present new obstacles or features that may interfere with the Facility at the areas allocated for the Facility, as indicated in Annexure B.
10.	**Existing Earthing and Lightning Protection system:** Buyer is responsible for ensuring that the existing earthing and lightning protection system is adequate and in sufficient working order to protect the existing infrastructure without considering the installation of the Facility.
11.	**Reactive Power Compensation:** The Facility will supply power at unity power factor and will not (under normal operation) provide any reactive power compensation. Any reactive power compensation required will need to be accounted for by the Buyer.
12.	**Inverter Access:** The Buyer shall grant sufficient space inside of the building 5, 4 and outside the building 1, 2, 3 as per the Layout in Schedule 1.
13.	**Inverter protection:** The Buyer is to provide barriers in front of the inverter area for building 4 as done for the building 5 – in the area highlighted in the PV layout in Schedule 1.
14.	**Tree management:** The Buyer shall prevent trees present around Roof 3 and 4 from casting additional shadow on the Facility to be installed.
27.	**Provision of POC:** The Buyer shall provide an adequate breaker located on their main Everest Busbar or a Busbar connection to welcome the solar facility.
28.	**Provision of space in Switchgear room:** The Buyer shall provide sufficient space in their connection room (Everest Building) for two panels of size 2mx1mx1m (our solar breakers).
29.	**Provision of trenches in the Switchgear room:** The Buyer shall ensure that sufficient space is provided to the Construction Contractor in their existing trenches to connect from the space allocated for the solar DB's to the POC allocated for connecting the solar facility to their system.

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Information Requirements – *Reliance Material*

#	Description
1.	**Sharing of Health and Safety Standards:** The Buyer shall ensure that Ensure that the Supplier is aware of the site-specific health and safety requirements and procedures.
2.	**Solar Hybrid Controller:** Buyer to provide historical data or existing control philosophy of the Generator controller(s) in order for the Construction Contractor to pre-configure the hybrid controller. End user to provide access to busbar or utility mains for the Construction Contractor to connect the CT's and the VT to the conductors as required.
3.	**Sequence of Operation:** Provide status of the existing control strategy and breaker status under the existing plant modes of operation.
4.	**Existing underground services:** Provide information and documents about any existing underground services (pipes, cables) around any cable trenches to be executed by the Construction Contractor.

Permits and Licenses

#	Description
1.	**Environmental Authorization [if applicable]:** A limited environmental assessment and environmental authorization can only be obtained by the owner of the Premises and are approved by the Federal Ministry of Environment.
2.	**Building permit [if applicable]:** A building permit for installation and operation of a solar PV system can only be obtained by the owner of the building and is approved by the local municipality.
3.	**Compliant fire safety permit [if applicable]:** Where applicable Buyer will revise its Fire Safety Permit to ensure compliance.

Approvals

#	Description
1.	**Design acceptance:** Once the system is designed, post signature, the Buyer is responsible to review and accept the Engineering and the Execution methodology prior to any purchase of equipment or installation. The Seller is required to arrange a design review meeting for a detailed review of the design, The Buyer shall have 7 days from receipt of design documentation to review.. If after 7 days no comments have been received the design will be considered accepted.
2.	**Earthing and Lightning Study Approval:** Buyer to review and accept the earthing and lightning protection study considering any dependencies from the Facility on the existing earthing and lightning protection systems.
3.	**Roof Structural Assessment:** Buyer to take responsibility for the structural integrity of the Buyer's building and overhead cable/pipe structure and its ability to accept the additional structural loading implied by the installation of the solar Facility.. For the avoidance of doubt, such responsibility applies only to the structural integrity of the Buyer's property and does not apply to the structural integrity of the solar Facility itself.

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SCHEDULE 6: DEEMED ENERGY

Deemed Energy Formula

Deemed Energy will be calculated with reference to modelled performance of the system, taking into consideration the onsite solar irradiation.

Deemed Energy for any given calendar month is calculated by considering the Performance Ratio modelled for that particular month, taking into account module degradation and adjusting for global horizontal irradiance for each 15-minute interval during the periods of Curtailed Operation.

Supplier shall maintain accessible records that can distinguish when the Facility is a) operating normally and the Buyer consumes all of the Sent Out Energy ("**Normal Operation**"), b) when the Existing Facility is unable to accept any amount of the Energy from the Facility, including reduced demand or consumption at the Existing Facility ("**Curtailed Operation**").

To calculate the Deemed Energy for any given month, the following formula shall be used:

$$E_{Deemed} = \sum_{1}^{j} Max\ |0, PR_{month} \times Cap \times Irr_i - E_{metered(i)}|$$

Where:

E_{Deemed}	=	Deemed Energy (kWh) for any given month.
j	=	Total number of Curtailed Operation intervals during the applicable calendar month.
PR_{month}	=	Performance Ratio based on Global Horizontal Irradiation modelled for each month as shown in the table below
Cap	=	Installed capacity of the facility, corrected for module degradation at a rate of 0.7%/year.
$Irr_{(i)}$	=	Global horizontal irradiance measured by the onsite reference pyranometer and averaged over 15-minute interval i (kW/m^2).
$E_{metered(i)}$	=	Sent Out Energy during interval i.

Values for PR_{Month}		
	PR Based on Global Horizontal Irradiation	**PR Based on Global In-Plane Irradiation**
January	76.8%	77.5%
February	76.6%	77.1%
March	76.2%	76.6%
April	76.0%	76.2%
May	76.8%	76.9%
June	78.3%	78.4%
July	78.8%	78.9%
August	78.4%	78.6%
September	77.5%	77.8%
October	76.5%	76.9%
November	76.4%	76.9%
December	76.7%	77.4%
Annual	77.0%	77.4%

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SCHEDULE 7: TESTS ON COMPLETION

OVERVIEW

The prescribed tests that are required at the different project stages are summarized in the table below.

1 PROVISIONAL ACCEPTANCE REQUIREMENTS

Requirements
Visual inspection according to the Supplier's commissioning checklist
String Tests • Open Circuit Voltage Test • Short Circuit Current Test • Polarity Test • DC Cable Insulation Resistance • I-V Measurement Test
Earth Protection Tests • Earth continuity Test
AC Cable Tests • Insulation Resistance • Grid Voltage and Frequency test • Voltage drop test
System Functionality Tests • Grid disconnect test • Power limiting test • Hybrid controller test
Online monitoring Test • Proof of internet connection • Proof of device communication • Proof of site data on monitoring platform
System Performance Tests • Provisional Performance Ratio
Provisional Acceptance Documentation • Contractor's Documents • Provisional Acceptance test results • Provisional Performance ratio test report • Equipment commissioning reports (if applicable) • **PROVISIONAL ACCEPTANCE DEFECTS LIST**

2 DEFINITION OF TESTS

All tests shall be carried out in accordance with the following standards:

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- IEC 62446-1:2016+A1:2018 - Photovoltaic (PV) systems – Requirements for testing, documentation and maintenance
- IEC 60264-6 - Low voltage electrical installations - Part 6: Verification
- IEC 62548:2016 - Photovoltaic (PV) arrays. Design requirements

2.1 DC Tests

Test	Purpose	Pass/Fail Criteria
Open Circuit Voltage test	Verifies that PV array and system operating parameters are within specifications. Prior to closing the PV array DC disconnects, the open-circuit voltage (Voc) for each PV array source circuit should be tested and compared with expectations. This test can also be used to verify proper polarity.	The following formula is to be applied to all strings (such testing to be performed at an ambient temperature within the range of 0°C to 40°C): $VOC_{meas}(STC) \geq 0.95 \times VOC_{nom}$ **where:** $VOC_{meas}(STC)$ is the string open circuit voltage [V], measured with a target measurement uncertainty of ±1%, adjusted for Standard Test Conditions. VOC_{nom} is the sum of open circuit voltages [V] of all modules of the string, given by the module's datasheet.
Short Circuit Current test	Verifies that PV array and system operating parameters are within specifications. Short-circuit current tests are conducted on PV string source circuits to verify proper readings and that the circuits are clear from major faults. Short-circuit current readings taken under steady conditions must typically be within 5% or one another.	The following formulas are adhered to all strings (such testing to be performed at an ambient temperature within the range of 0°C to 40°C): $ISC_{meas}(STC) \geq 0.95 \times ISC_{nom}$ **where:** $ISC_{meas}(STC)$ is the string short circuit current [A] at Standard Test Conditions, measured with a target measurement uncertainty of ±1%, adjusted for Standard Test Conditions. ISCnom is the lowest short circuit current [A] of all modules of the string, given by the module's datasheet.

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Test	Purpose	Pass/Fail Criteria
Polarity Test	Verifies the correct polarity for PV DC circuits, and proper terminations for DC utilization equipment.	All strings and DC circuits are required to be tested for polarity at the inverter input and polarity values recorded.
DC Cable Insulation Resistance	Verifies the integrity of wiring and equipment and used to detect degradation and faults to PV Module wiring insulation.	All string cables (positive and negative) are required to be tested for insulation resistance with readings recorded. Strings shall be required to achieve an insulation resistance of greater than 1MΩ in order to pass.
Earth continuity	Verifies the integrity of earthing and/or equipotential bonding conductors, where fitted	Where protective earthing and/or equipotential bonding conductors are fitted on the DC side, such as bonding of the array frame, an electrical continuity test shall be made on all such conductors. The connection to the main earthing terminal should also be verified. All earthing conductors are required to achieve a resistance of 5 Ω or less unless otherwise specified in the earthing study.
I-V Measurement Test	I-V curves shall be measured for any strings that are underperforming with reference to other strings in the same orientation and compared to the supplier specifications. In addition to obtaining all the current and voltage data discussed previously, the detailed I-V curves obtained can be used to evaluate the following for PV modules and arrays: • True array maximum power point in relation to the operating voltage for inverters and other dc utilization equipment. • Voltage and power degradation rates from baseline measurements and subsequent measurements over time. • Identify array wiring problems or module failures. • Analyse the effects of shading on electrical output. • Evaluate losses due to module mismatch and array wiring methods. • Establish module or array ratings for performance guarantees or warranty purposes.		

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2.2 AC Tests

AC Cable Insulation Resistance	Verifies the integrity of wiring and equipment and used to detect degradation and faults to PV Module wiring insulation.	All AC cables forming part of the Facility shall be tested for insulation resistance and shall achieve an insulation resistance of greater than 1MΩ to pass.
Voltage and Frequency test	Verifies that the network voltage and frequency parameters are within the design limits.	Measure End-User network (Private Distribution Network), utility, and alternative energy supply (for example diesel generator) voltage and frequency to determine if it is within specified range, both before and after inverter connection.
Voltage drop test	Verifies that the cable sizing and length is according to required specifications maintaining voltage drop within allowable limits.	Measure potential difference between inverters and the interconnection point to ensure that the voltage drop is <5% at rated load.

2.3 System Functionality Tests

Test	**Procedure**
Grid connect / disconnect test	Perform test to simulate electricity supply failure to ensure inverters switch off and back on as intended, verifying the proper operation of disconnecting means and component connection and disconnection sequences. Verify that interactive inverters de-energize their output upon loss of grid voltage and/or internal electricity grid generated by additional energy sources. This is a safety requirement to prevent interactive inverters from operating as an islanded electrical system without voltage or frequency control and preventing them back feeding de-energized electrical systems. These functions are performed internally by all utility-interactive inverters listed according to the IEEE 1547 and UL1741 standards. Verify that interactive inverters automatically reconnect to their output once the voltage has been restored.
Power limiting test	Simulate low load conditions to test inverter power limiting function of the system to prevent feedback onto grid.
Hybrid controller and operational philosophy test	Perform tests as per OEM specification to ensure full functionality of the hybrid controller and integration with diesel generator, utility connection and/or other alternative energy supply as per all scenarios contemplated in the operational philosophy.

2.4 Data Monitoring and Connectivity Tests

Proof of internet connection	Verify internet connectivity and connection speed of internet provided as per the Agreement meets system requirements.

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Proof of device communication	Verify all data connection and communication between inverters, power meters, sensors, hybrid controller(s) and instrumentation on the respective communication protocols.
Proof of site data on monitoring platform	Verify the system is successfully registered and set-up in the monitoring web portal and verify system data accuracy and system setup.

2.5 System Performance Tests – Provisional and Final Performance Ratio Tests

The system performance tests including the location, alignment calibration, measurement uncertainty and maintenance of sensors shall be in accordance with IEC 61724-1:2017.

The following measuring instruments will be used:

- two SMP10 pyranometers installed in a horizontal plane measuring global irradiance;
- a certified export power meter (Class 0.5s, MID approved);
- two temperature sensors type PT100 to measure module temperature with a maximum uncertainty of +/-1°C (placed on the backside of a module in each of the PV arrays with common azimuth and tilt at placed least 2 modules away from the edge of the array);
- one temperature sensor type PT100 to measure ambient temperature with a maximum uncertainty of +/-1°C.

The following data will be gathered with a maximum sampling period of 1 minute and averaged over 5-minute intervals for the reporting period:

- Global horizontal irradiance - GHI (W/m^2);
- AC output power in kW measured by the billing meter (kWh);
- Module temperature (°C);
- Ambient temperature (°C);
- PV power limit setpoint – being the value in kW which the solar hybrid controller has set as the limit for overall PV output;
- Generator energy output (kWh);

The following 5-minute intervals will not be considered valid and will be excluded from the test:

- inverters are not available due to the grid parameters being out of range/operation;
- the data is corrupted (as agreed by both parties) *
- there is Curtailed Operation, being all 5-minute intervals where:

$$P > 0.95 * PV\ Limit$$

where:

P	=	Average AC power generation of all arrays in AC kW, for the specific 5-minute interval.
$PV\ \ Limit$**	=	The PV power limit set-point

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In addition, the Provisional Performance Ratio will only consider recording intervals where the average solar irradiance is greater than 100W/m^2;

** If data corruption accounts for more than 5% of the total measurement period then the Parties will agree to use alternative sources of weather data to determine the performance during these periods*

*** If PV Limit data is not accessible or available, an alternative method for determining when curtailment is occurring will be agreed by both parties prior to works commencing on-site*

2.5.1 Provisional Performance Ratio

The Provisional Performance Ratio verifies the overall performance of the PV array and system prior to provisional acceptance.

The Provisional Performance Ratio will be measured as part of the Provisional Acceptance Tests. Data gathering will continue until at least a total of 480 valid 5-minute recording intervals (corresponding to a total operation time of 40 hours) are covered.

In the event that, for reasons outside the Contractor's control, it is not possible to obtain the required amount of data within 1 month from commencement of the Provisional Acceptance Tests, the following steps will be taken:

a) The irradiance threshold will be reduced (to a minimum of 50W/m^2) until such a point that there are 480 valid 5-minute intervals;
b) If, after reducing the irradiance threshold there is still insufficient data, the test will be carried out on the valid intervals.

In the event that the required PR is not demonstrated by the above method the contractor shall have the right to revert to using 1 min average data.

The Provisional Performance Ratio (PR) is calculated using the formula:

$$PR_{annual-eq} = (\sum_k P_{out,k} \times \tau_k) / \sum_k \left(\frac{(C_k \times P_0) \times G_k \times \tau_k}{G_{i,ref}} \right)$$

<u>Where C_k is given by:</u>

$$C_k = 1 + \gamma \times (T_{mod,k} - T_{mod,avg})$$

<u>And:</u>

$PR_{annual-eq}$ = The Provisional Performance Ratio as defined in Annexure H and which will be compared with the Guaranteed Performance Ratio for the purposes of the Performance Warranty.

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$\sum_k$	=	The summation over all valid recording intervals in the reporting period (total of 480 valid 5-minute intervals);
$P_{out,k}$	=	The average AC output power in kW measured by the billing meter during the recording interval k.
τ_k	=	The duration in hours of the kth recording interval within a reporting period.
P_0	=	The DC power rating of the entire Facility in kWp calculated by summing up all the rated PV module capacities in the Facility and corrected for module degradation allocated linearly from 0% at COD and increasing to 0.5%/year for the first year of operation;
G_k	=	The average global horizontal irradiance measured by the onsite pyranometer(s) in kW/m^2;
G_{ref}	=	The reference irradiance at STC at which P_0 is determined (1 kW/m^2);
γ	=	The temperature coefficient of power for the supplied solar modules as specified by the manufacturer in the module data sheet (%/°C) expressed as the absolute value;
$T_{mod,k}$	=	The average PV module temperature measured by the onsite temperature sensors measuring module temperature for time interval k;
$T_{mod,avg}$	=	is calculated based on historical weather data for the site and an empirical relation for the predicted module temperature as a function of ambient conditions and module construction. It should be calculated by computing an irradiance-weighted average of the predicted module temperature.

Note:

1) the above method of calculating an annual temperature equivalent performance ratio is intended to align with the methodology presented in IEC 61724-1:2017.
2) $T_{mod,k}$ shall be based on actual onsite measured module temperature instead of modelled based on a heat transfer model.
3) $T_{mod,avg}$ will be calculated based on the following formula used by PVSyst:

$$T_{mod,avg} = \sum_i^{8760} \left[\left(T_{a,i} + E_{POA,i} \times \frac{\alpha \times (1 - eta_m)}{U_0 + U_1 \times WS_i} \right) \times E_{POA,i} \right] \Big/ \sum_i^{8760} E_{POA,i}$$

Where:

$T_{a,i}$	=	Average ambient temperature for hourly interval i as exported from the PVSyst model which was used to calculate the Expected Performance Ratio;
$E_{POA,i}$	=	Average plane of array irradiance for hourly interval i as exported from the PVSyst model which was used to calculate the Expected Performance Ratio;
α	=	the adsorption coefficient of the module (use PVsyst default value of 0.9 unless otherwise specified by the Contractor based on alternative values used in the PVSyst model);

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IN ACCORDANCE WITH SECTION 10 OF THE STAMP ACT 2005, I CERTIFY THAT IN MY OPINION THIS INSTRUMENT IS CHARGEABLE WITH A STAMP DUTY OF

GH¢ 0.50 BEING THE DUPLICATE TO

DOCUMENT No. LVD GAS138815468 2021 ON WHICH THE FULL

DUTY OF GH¢ 2.00 HAS BEEN PAID

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eta_m	=	the efficiency of the PV module (use PVsyst default value of 0.1 unless otherwise specified by the Contractor based on alternative values used in the PVSyst model);
U_0	=	the constant heat transfer component (W/m^2K) as indicated on the PVSyst report in annexure B
U_1	=	the convective heat transfer component (W/m^3K) as indicated on the PVSyst report in annexure B
WS_i	=	Average wind speed for hourly interval i as exported from the PVSyst model which was used to calculate the Expected Performance Ratio;

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